बिड संख्या/Bid Number: GEM/2026/B/7367951
दिनांक /Dated: 17-03-2026

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	07-04-2026 19:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	07-04-2026 19:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Finance
विभाग का नाम/Department Name	Department Of Financial Services
संगठन का नाम/Organisation Name	Indian Overseas Bank
कार्यालय का नाम/Office Name	Chennai
वस्तु श्रेणी /Item Category	Hiring of Agency for IT Projects- Milestone basis
अनुबंध अवधि /Contract Period	5 Year(s)
टर्नओवर के लिए एमएसई को छूट प्राप्त है / MSE Relaxation for Turnover	Yes | Complete
टर्नओवर के लिए स्टार्टअप को छूट प्राप्त है / Startup Relaxation for Turnover	Yes | Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3

बिड विवरण/Bid Details	
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / **Number of Auto Extension count**	1
बिड से रिवर्स नीलामी सक्रिय किया/**Bid to RA enabled**	No
बिड का प्रकार/**Type of Bid**	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /**Time allowed for Technical Clarifications during technical evaluation**	2 Days
मूल्यांकन पद्धति/**Evaluation Method**	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / **Financial Document Indicating Price Breakup Required**	Yes

ईएमडी विवरण/EMD Detail

एडवाईजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	3000000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%)/ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	62

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance securityshould be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

ASSISTANT GENERAL MANAGER
CHENNAI, Department of Financial Services, Indian Overseas Bank, Ministry of Finance
(Assistant General Manager)

बोली विभाजन लागू नहीं किया गया/Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes

1. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Scope of Work:1773753010.pdf

Payment Terms:1773753019.pdf

This Bid is based on Quality & Cost Based Selection (QCBS) . The technical qualification parameters are :-

Parameter Name	Max Marks	Cutoff Marks	Qualification Methodology Document
As specified in tender document	100	70	View File

Total Minimum Qualifying Marks for Technical Score: 70

QCBS Weightage(Technical:Financial):70:30

Presentation Venue: Indian Overseas Bank,
Information Technology Dept.
Central Office, 763, Anna Salai,
Chennai – 600002.

Pre Bid Detail(s)

मूल्य भिन्नता खंड दस्तावेज़/Pre-Bid Date and Time	प्री-बिड स्थान/Pre-Bid Venue
25-03-2026 11:00:00	Indian Overseas Bank, Information Technology Dept. Central Office, 763, Anna Salai, Chennai – 600002.

Hiring Of Agency For IT Projects- Milestone Basis (1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Scope of Work	As stipulated in tender document
Resources Needed	As specified in Scope of work
Deployment of core team	hybrid(Buyer to specify model in scope of work)
Deliverables / Timelines	As stipulated in tender document
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

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परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	Quantity	अतिरिक्त आवश्यकता /Additional Requirement
1	Gorrela Siva Teja Prudvinath	600002,763 Anna Salai, Mount Road	Project / Lumpsum Based	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. **Generic**

   OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2. **Buyer Added Bid Specific ATC**

   Buyer uploaded ATC document Click here to view the file.

3. **Certificates**

   Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

4. **Generic**

   Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. Click here to view the file

अस्वीकरण/Disclaimer

The additional terms and conditions have been incorporated by the Buyer after approval of the Competent Authority in Buyer Organization, whereby Buyer organization is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any eccentricity / restriction arising in the bidding process due to these ATCs and due to modification of technical specifications and / or terms and conditions governing the bid. If any clause(s) is / are incorporated by the Buyer regarding following, the bid and resultant contracts shall be treated as null and void and such bids may be cancelled by GeM at any stage of bidding process without any notice:-

1. Definition of Class I and Class II suppliers in the bid not in line with the extant Order / Office Memorandum issued by DPIIT in this regard.
2. Seeking EMD submission from bidder(s), including via Additional Terms & Conditions, in contravention to exemption provided to such sellers under GeM GTC.
3. Publishing Custom / BOQ bids for items for which regular GeM categories are available without any Category item bunched with it.
4. Creating BoQ bid for single item.
5. Mentioning specific Brand or Make or Model or Manufacturer or Dealer name.
6. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
7. Floating / creation of work contracts as Custom Bids in Services.
8. Seeking sample with bid or approval of samples during bid evaluation process. (However, in bids for attached categories, trials are allowed as per approved procurement policy of the buyer nodal Ministries)
9. Mandating foreign / international certifications even in case of existence of Indian Standards without specifying equivalent Indian Certification / standards.
10. Seeking experience from specific organization / department / institute only or from foreign / export experience.
11. Creating bid for items from irrelevant categories.
12. Incorporating any clause against the MSME policy and Preference to Make in India Policy.
13. Reference of conditions published on any external site or reference to external documents/clauses.
14. Asking for any Tender fee / Bid Participation fee / Auction fee in case of Bids / Forward Auction, as the case may be.
15. Buyer added ATC Clauses which are in contravention of clauses defined by buyer in system generated bid template as indicated above in the Bid Details section, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by GeM GTC.
16. In a category based bid, adding additional items, through buyer added additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogs or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller within 4 days of bid publication on GeM. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into

force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the सामान्य नियम और शर्तें/General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो।बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---

इण्डियन ओवरसीज़ बैंक
Indian Overseas Bank
आपकी प्रगति का सच्चा साथी
Good people to grow with
www.iob.in

GeM Tender

for

Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model

Information Technology Department

Central office, Annexe building

Indian Overseas Bank

763, Anna Salai

Chennai 600002

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THIS DOCUMENT CONSIST OF FOLLOWING PARTS.

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Part 1-Disclaimer

The information contained in this tender document or information provided subsequently to bidder(s) or applicants whether verbally or in documentary form by or on behalf of Indian Overseas Bank (Bank), is provided to the bidder(s) on the terms and conditions set out in this tender document and all other terms and conditions subject to which such information is provided.

This tender is neither an agreement nor an offer and is only an invitation by Bank to the interested parties for submission of bids. The purpose of this tender is to provide the bidder(s) with information to assist the formulation of their proposals. This tender does not claim to contain all the information each bidder may require. Each bidder should conduct its own investigations and analysis and should check the accuracy, reliability, and completeness of the information in this tender and where necessary obtain independent advice. Bank makes no representation or warranty and shall incur no liability under any law, statute, rules or regulations as to the accuracy, reliability or completeness of this tender. Bank may in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information in this tender.

Subject to any law to the contrary, and to the maximum extent permitted by law, Bank and its directors, officers, employees, contractors, representatives, agents, and advisers disclaim all liability from any loss, claim, expense (including, without limitation, any legal fees, costs, charges, demands, actions, liabilities expenses or disbursements incurred therein or incidental thereto) or damage (whether foreseeable or not) ("Losses") suffered by any person acting on or refraining from acting because of any presumptions or information (whether oral or written and whether express or implied), including forecasts, statements, estimates, or projections contained in this RFP document or conduct ancillary to it whether or not the Losses arises in connection with any ignorance, negligence, casualness, disregard, omission, default, lack of care, immature information, falsification or misrepresentation on the part of Bank or any of its directors, officers, employees, contractors, representatives, agents, or advisers.

Bidders are advised to go through the entire tender document before submission of online Bids to avoid any chance of ineligibility. The eligible Bidders desirous of taking up the project for providing the proposed Product and Services are invited to submit their technical and commercial proposal in response to this tender. The criteria and the actual process of evaluation of the responses to this tender and subsequent selection of the successful Bidder will be entirely at Bank's discretion. This tender seeks proposal from Bidders who have the necessary experience, capability & expertise to provide the proposed Services adhering to Bank's requirements outlined in this tender.

Part 2-Invitation To The Bid

2.1 Introduction

Indian Overseas Bank (hereinafter referred to as "Bank") invites bids (hereinafter referred to as "bid/tender") from reputed system Integrators (hereinafter referred to as "bidder") for Supply, Implementation, Maintenance of Cheque Truncation Systems (CTS) (hereinafter collectively also referred to as "Software/Solution/CTS") based on the requirements, specifications, terms, and conditions laid down in this tender.

The specifications given are the minimum requirements and the bidders may choose any specification equivalent or superior to the one given by the Bank in case the exact match is not in their product line.

2.2 Details on bidding process and bid submission:

S NO	Particulars	Timeline
1	Issuance Date of tender	As per GeM bid
2	Last Date of request for Queries/ Clarifications (Last Date of Receiving request for queries / clarifications before the Pre-bid Meeting)	As per GeM bid Format for seeking clarification is given in Clause No 4.7. Queries to be sent to midhwd@iob.bank.in Each Recipient should notify the Bank of any error, fault, omission, or discrepancy found in this RFP document but not later than last date of receiving clarifications. No further queries shall be entertained by the Bank after last date for submitting clarifications
3	Pre–bid Meeting Date and Venue Details	As per GeM bid

		Bidders willing to participate in pre-bid meeting need to submit their details at midhwd@iob.bank.in . Details of virtual pre-bid meeting would be communicated via e-mail to interested bidders separately. Meeting Venue for hybrid meeting: ITD Auditorium IOB Central Office, Annexe Building. Indian Overseas Bank, Information Technology Dept. Central Office, 763, Anna Salai, Chennai – 600002. The text of the questions raised (without identifying the source of enquiry) and the responses given, together with amendment to the bid document, if any, will be ported on websites: www.iob.bank.in and GeM portal.
4	Last Date of Submission/ Closing Date in Online Mode (Last Date of Submission of tender Response)	As per GeM bid For Offline submission of documents listed in Sl. No. 9 below, the sealed envelope shall be addressed to the Bank and to be delivered by hand at the address below.

		Indian Overseas Bank, Infrastructure Division Information Technology Dept. Central Office, 763, Anna Salai, Chennai – 600002.
5	Date and time of opening of Technical Bid	As per GeM bid
6	Date, time and venue of presentation & demo by the bidders satisfying Eligibility Criteria prescribed in 3.5	Shall be intimated separately by the Bank through email.
7	Opening of Commercial Bids	The commercial bids of only those bidders will be opened who meet the eligibility criteria and qualify in technical evaluation. The date for commercial bid opening would be communicated via e-mail to the technically qualified Bidders.
8	Online Bid Submission Details	This tender will follow GeM bidding process and the same will be conducted through Government e-Market Place (GeM) portal. The documents listed below in Sl.No 9 only to be submitted in offline physical mode in addition to submitting the same of online.
9	Documents to be submitted physically by Bidders (Offline Mode)	1. Bid Security (EMD) for Rs.30,00,000/- (Rupees Thirty Lakhs Only) to be submitted in the form of Bank Guarantee (issued by a nationalised/

		scheduled commercial Bank located in India (other than Indian Overseas Bank). BG should be valid for 225 days from the last date for submission of the Bid (in the format provided at Part 7.11). 2. Pre-Contract Integrity Pact as per format 7.12
10	Name of contact officials	Chief Manager Indian Overseas Bank, Information Technology Dept. Central Office, 763, Anna Salai, Chennai – 600002. Phone: 044- 28519474 /9466/9071 (10.00am to 5.00 pm)
11	Contact e-mail ID	midhwd@iob.bank.in
12	Meeting Venue	ITD - Central Office Indian Overseas Bank, Information Technology Dept. Central Office, 763, Anna Salai, Chennai – 600002.

Part 3. Detailed Project Specific Terms and Conditions

3.1 Introduction

Indian Overseas Bank (hereinafter referred as BANK) is a leading public sector undertaking, with a Branch network of more than 3500 branches in India and branches/offices in 4 countries overseas. All branches are having 4 Mbps network connectivity and is on Core Banking Solution (CBS) platform of Finacle from M/s. EdgeVerve Systems Limited. Bank has its Primary Data Center (PDC) and Near Data Center (NDC) at Chennai, Disaster Recovery site (DRS) at Hyderabad.

3.2 Project brief

Bank proposes to implement National Grid CTS Solution at Bank's DC at Chennai & DR at Hyderabad. The selected bidder is expected to understand the existing CTS operations of the Bank and implement the CTS solution in Banks DC and DRS in CAPEX Model. The successful bidder should also implement UAT environment at Banks DC / DRS as per requirement of the Bank. The bidder shall be responsible for supply, implementation, and maintenance of the Solution meeting the technical specifications and functional requirements stipulated in this tender.

3.3 Contract Period

The contract will be for a period of 5 years, and the contract may be renewed for further period of two years based on satisfactory performance and banks requirement on mutually agreed terms and conditions.

3.4 Scope of work

Further details on the Scope of work and implementation plan is provided in Part 6 of this tender.

3.5 Eligibility Criteria (EC)

Bidders who are participating in the tendering process should meet the eligibility criteria as given hereunder. The bidder must submit the supporting documents pertaining to the eligibility criteria along with the Technical Bid. The bidders who do not fulfil any of the following eligibility criteria are liable to be rejected. Compliance of the below clauses to be provided in Format 7.2

Sl.no	Criteria	Documents to be submitted along with technical bid
1.	The bidder should be a company registered in India as per Companies Act 1956/2013 or a partnership firm or a Limited Liability partnership firm under the Limited Liability Partnership Act 2008 and must be in existence for the last 5 years on the date of tender.	The Certificate of Incorporation issued by the Registrar of Companies must be submitted along with the technical bid.
2.	The Bidder must have minimum annual average turnover of Rs. 30.00 Crores for last three (3) financial years i.e FY 2022-23, FY 2023-24, FY 2024-25 The bidder should submit audited financial statements for the respective year(s). The turnover must be the individual company turnover and not that of any group of companies. In case of MSE relaxation may be given if the bidder is fulfilling technical and qualifying criteria.	Audited financial statements for the last three financial years to be submitted. Also, a Certificate signed by the Chartered Accountants regarding company's financial capability to be submitted.
3.	Bidder should have registered net profit (after tax)/positive net worth	Documentary evidence in the form of certified Audited

	in the last three financial years i.e FY 2022-23, FY 2023-24, FY 2024-25	Balance Sheets of relevant periods or a certificate from the Chartered Accountant /Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid.
4.	Bidder should have experience in implementation of CTS solution in one scheduled commercial bank (public/private) in India within last 3 years as on date of bid submission and the solution should be currently working as on date of the tender.	Bidder to submit necessary proof of document & references for the same: 1)Purchase Order 2)Project Go-Live/Sign-off certificate 3) Client reference details as per format 7.6
5.	The Bidder should be the OEM or should be the authorized partner of OEM for supply of licenses and solution implementation and maintenance support under warranty / AMC / ATS.	Manufacturer authorization form as per the **Format 7.18** provided in the tender to be submitted for all the items in BOM.
6.	The bidder should submit a letter of undertaking stating to agree to abide by all the terms and conditions stipulated by the Bank in the tender including all parts, addendum and corrigendum based on the requirements, Scope of work, specifications, terms and conditions laid down in this Request for Proposal (tender).	Bidder to submit the letter as per format provided in **Format 7.10** along with the technical bid. Power of attorney of the signatory to be uploaded along with the bid.
7.	The bidder should not have been blacklisted by Public Sector/ Central Government / State	Bidder to submit the Self Declaration certificate in the letterhead of the company

	Government(s) / PSUs / RBI / IBA / NPCI or any other Regulatory Authority.	as per format provided in **Format 7.3.**
8.	The Bidder shall undertake that the proposed solution / software to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done.	Bidder to submit the Self Declaration certificate in the letterhead of the company as per format provided in **Format 7.4**
9.	**Signing of Integrity Pact** is a prequalification for submission of the bids. Integrity Pact is deemed to be a part of contract (**Format 7.12**).	Bidder to submit Integrity Pact **(Format 7.12)** in ₹200 Stamp paper duly signed and stamped. Physical copy of the same to be submitted to tendering officials before bid opening.
10.	Bank shall follow the public procurement guidelines as stipulated in Order ref: 6/18/2019-PPD Dated 23.07.2020 from Department of Expenditure, Ministry of Finance- Restrictions under Rule 144 (xi) of General Financial Rules 2017. 1. Any bidder from a country which shares a land border with India will be eligible to bid in this tender, only if the bidder is registered with the Competent Authority (DPIIT).	Either of following as applicable: 1. The certificate for being registered with the Competent Authority (DPIIT) 2. Certificate in format given in **Format 7.13**.

	Bidder to submit the required certificate along with the technical bid. 2. If clause 1 above is not applicable to any bidder, they shall submit the certificate as per **Format 7.13** in their letter head, duly signed by their authorised signatory along with the technical bid. Any bid, not accompanied with the above certificate shall be summarily rejected.	

Note:

1. Consortium bidding is not permitted.
2. Bank reserves the right to verify references provided by the Bidder independently. Any decision of the Bank in this regard shall be final, conclusive and binding up on the Bidder.
3. Bidders shall upload the documentary proof for the criteria detailed above. It shall be the responsibility of the bidders to submit relevant proof of document along with the technical bid. Evaluation shall be done based on the documents submitted along with the technical bid. It shall be the responsibility of the bidder to submit required Documentary proofs which are necessarily unambiguous and shall be capable to establish beyond any doubts that bidder is satisfying the particular criteria/clause for which the document is submitted.
4. During evaluation and comparison of bids, the Bank may, at its discretion, may ask the bidder for clarifications on the bid. The request for clarification shall be given in writing through GeM portal by giving a deadline for submission of the clarification/shortfall. Bidder should respond through GeM portal by that specified date as advised by Bank, failing which their bid shall be rejected. No change in prices or substance of the bid shall be permitted. No post-bid

clarification at the initiative of the bidder will be entertained. The shortfall information/documents will be sought only in case of historical documents which pre-existed at the time of the tender opening, and which have not undergone change since then.

5. **Bidders are advised to submit necessary purchase orders in evidence of experience criteria as per tender terms and conditions. It may be noted that any clarification in experience criteria can be sought only on purchase orders which were submitted during bid submission. No new purchase orders shall be accepted in order to qualify the bidder.**

3.6 Cost of Bidding

All costs and expenses (whether in terms of time or money) incurred by the Recipient / Respondent in any way associated with the development, preparation, and submission of responses, including but not limited to attendance at meetings, discussions, demonstrations, etc. and providing any additional information required by the Bank, will be borne entirely and exclusively by the Recipient / Respondent.

The Bank will in no case be responsible or liable for any of such costs, regardless of the conduct or outcome of the Bidding process.

3.7 Earnest Money Deposit

1. The bid should also be accompanied by BG in lieu of Earnest Money deposit (refundable) of Rs. 30,00,000/- (Rupees Thirty Lakh Only). Bank Guarantee submitted in lieu of EMD should be valid for minimum period of 225 days with a claim period of 60 days from the date of expiry of guarantee from the last date for submission of bids. The format for submission of EMD in the form of Bank Guarantee is as per Format 7.11 of this RFP.
2. This Bank Guarantee in lieu of EMD will be returned to the disqualified bidder along with notice of disqualification, to unsuccessful bidders on determination of successful bidder and to the successful bidder on receipt of the Bank guarantee for performance security. Bids received without the Bank Guarantee in lieu of EMD mentioned above will be rejected.

3. The above-mentioned bank guarantees issued by any scheduled commercial bank other than Indian Overseas Bank is acceptable to us. Bidder should inform the Guarantee Issuing Bank to forward the original guarantees directly to the Bank or any other mode advised by the Bank. Along with Physical BG, Bidder should also advise the BG issuing Bank to generate SFMS message to IOB and details to be shared. For the purpose of generating SFMS, account particulars are given hereunder:

   Beneficiary IFSC: IOBA0009072
   Beneficiary address: Indian Overseas Bank, ITD, Central Office, Chennai - 600002

4. Bank shall forfeit EMD /invoke Bank Guarantee in lieu of EMD in the following events:

   1. If a bidder withdraws the bid during its validity period.
   2. If a bidder makes any statement or encloses any document which turns out to be false/incorrect at a later date.
   3. In case the successful bidder fails to sign the contract or fails to furnish the Bank Guarantee (Performance & Delivery) as required.

3.8 Performance Security

1. Within 15 (Fifteen) days (exclusive of holidays) of the date of acceptance of the Purchase Order, the Bidder shall furnish a bank guarantee for a value equivalent to 5% of the order value for a duration of 62 months with a claim period of 3 months (for delivery implementation & operationalization) as per format Part 7.15. In case the contract is getting extended on account of the delay on account of go-live and/or delay in deploying the FMS or any other reasons, validity of the Bank guarantee to be extended to ensure that the validity of the Bank Guarantee is co-terminus with the contract period with a claim period of 3 months post expiry.

2. Failure of the Bidder to comply with the requirement as stipulated above shall constitute sufficient grounds for the annulment of the award of contract and

forfeiture of the Earnest Money Deposit. In such an event, the Bank will call for new bids.

3. The above-mentioned bank guarantees issued by any scheduled commercial bank other than Indian Overseas Bank is acceptable to us. Bidder should inform the Guarantee Issuing Bank to forward the original guarantees directly to the Bank or any other mode advised by the Bank. Along with Physical BG, Bidder should also advise the BG issuing Bank to generate SFMS message to IOB and details to be shared. For the purpose of generating SFMS, account particulars are given hereunder:

   Beneficiary IFSC: IOBA0009072
   Beneficiary address: Indian Overseas Bank, ITD, Central Office, Chennai - 600002

4. Bank reserve its right to invoke the Bank Guarantees (for delay in delivery or non- delivery/ performance) on the following grounds after providing a cure period of 45 days and as per terms and conditions stipulated in the Bank Guarantee:

   a) Delay / non-delivery/ Delay in Implementation beyond stipulated schedule as per clause schedule mentioned in this bid.

   b) Non-Performance or violation of the SLA(Part 9)or breach of Contract terms and conditions.

3.9 Evaluation Process:

The bid evaluation will be a three-stage process using Quality Cum Cost Based Selection. The stages are:

1. **Eligibility Criteria Evaluation:**

Eligibility criterion for the Vendor to qualify this stage is clearly mentioned in clause 3.5 of this document and in the GeM bid. The bidder would need to submit the supporting documents as part of the eligibility proof in the technical bid along with the relevant documents. The bidders who are not fulfilling any one of the eligibility criteria are liable to be disqualified.

2. **Technical Bid Evaluation**

Post eligibility evaluation ,technical evaluation and Scoring shall be carried out for the bidders who have qualified eligibility criteria. However, to expedite the process, Bank may at its own discretion carry out eligibility criteria and technical bid evaluation simultaneously. Inviting bidders for technical presentation or seeking information during technical evaluation shall not construe that bidder is qualified as per 3.5 of the tender. However, bidder eligibility status shall be informed to bidders individually. Technical and Functional Evaluation is detailed in clause 3.10

3. **Commercial Bid evaluation:**

Commercial bid shall be opened and evaluated for the bidders who are qualified in eligibility and technical criteria. Commercial scores shall be granted, and weighted score shall be arrived as per the criteria stipulated in the tender. Financial scores shall be computed and awarding of contract shall be based on the criteria mentioned in the gem bid as per gem terms and conditions.

Price should not be indicated at any place in the Technical Bid. If the price is indicated in the technical bid, the entire bid will be summarily rejected.

3.10 Technical & Functional Evaluation

3.10.1 Technical Evaluation Criteria

Tender will be awarded on the basis of Quality cum Cost based selection in 70:30 ratio i.e. 70% Weightage for Technical bid + 30% Weightage for Commercial bid and the bidder who score HIGHEST MARKS will be

declared as H1 Bidder. Weightage of technical bid (Max 70%) will be calculated on total marks of technical evaluation scoring parameter.

The vendor needs to achieve a cut – off score of 70 marks in this evaluation stage to be qualified for commercial bid opening. Only those vendors who achieve the specified cut–off scores would be short-listed for Commercial Bid Submission & Evaluation. Technical Proposal will be evaluated for technical suitability and the criteria for evaluation of technical bids are as under:

Sl. No	Evaluation Criteria	Description / Evaluation Parameters	Maximum Marks
1.	**Experience in CTS Implementation with AI-based Automation**	Number of Scheduled Commercial Banks in India (as per RBI) where the bidder/OEM/OSD has implemented CTS solution with automation of inward CTS clearing using Artificial Intelligence during the last 5 years. **Conditions:** • Minimum volume > 1 lakh instruments per day (inward & outward) • API-based clearing • Automatic signature & other field verification using AI **Scoring:** • 10 marks per eligible implementation • Maximum 2 implementations **Documents:** PO / WO / Engagement Letter and Completion or Satisfactory Certificate or any other verifiable proof	**20**
2.	**Technical Presentation on Proposed Solution**	Evaluation based on technical presentation and demo by the bidder as per sub-criteria detailed below	**20**

2.a	Presentation on Relevant Experience	CTS and AI-based banking solution experience	5
2.b	Solution Presentation & Live Demo	Proposed solution, IT/Solution architecture, project methodology, governance, development & support model, security aspects, implementation challenges and mitigation, features as per RFP	5
2.c	Technical Approach & Implementation Strategy	Project plan, go-live strategy, quality management plan, risk identification and mitigation	5
2.d	Learning & Transition Management	Training plan, customized training materials, training for technical staff and end-users, documentation and knowledge transfer	5
3.	**Site Visit**	Site visit at one client location where the bidder has implemented Data Enrichment and CTS solution as per Criteria 1. Vendor to facilitate visit for Bank officials to verify claims and assess operational capability	**10**
4.	**Compliance to Proposed Solution Features**	Compliance to Technical, Functional & Regulatory Requirements as mentioned in the RFP	**25**
5.	**Security Standards**	ISO 27001 Certification (valid certificate to be submitted)	**5**
6.	**Experience in Proposed Solution (Years of Operation)**	• ≥ 5 years – 10 Marks • > 3 years and < 5 years – 6 Marks • > 1 year and ≤ 3 years – 3 Marks • < 1 year / No experience – 0 Marks **Documents:** PO / Engagement Letter or any other verifiable proof	**10**
7.	**Adequacy of Team Size**	**CTS & AI Domain Professionals (5 Marks):** • 10–15 employees – 3 Marks • >15 employees – 5 Marks	**10**

		Data Enrichment Team (5 Marks): • 40–50 employees – 5 Marks • >30–40 employees – 3 Marks • 10–20 employees – 1 Mark **Documents:** Employee resumes and resource details on company letterhead, duly signed and stamped	
			Total Marks	**100**

Note:

1. Bank shall not entertain any claims or representation on the technical scores awarded and is not bound to give any reply to the bidders on the technical scores.
2. Bidders shall submit proof of document for criteria detailed above along with the technical bid. It shall be the responsibility of the bidders to submit relevant proof of document. Scoring shall be done based on the documents submitted along with the technical bid and Bank may not seek any further correspondence in this regard.

3.10.2 Award of Contract:

Commercial bid shall be opened and evaluated for those who have qualified under the Technical Bid by submitting the required documents, and order shall be placed as per tender terms and conditions.

3.11 Compliance to RBI guidelines

Standard Covenants in terms of Master Direction on outsourcing of Information Technology Services by RBI (circular no. RBI/DOR/2025-26/171 DOR.ORG.REC.No.90/21-04-158/2025-26 dated November 28, 2025 and related amendments).

On participation in this tender process, The Vendor hereby agrees and undertakes as under:

a. Vendor hereby agrees and confirms that it shall at all point of time, also abide and comply with the direction of RBI in vogue and as may be issued from time to time relating to outsourcing of such activities as if the same are incorporated herein.

b. Vendor hereby confirms and declares that the Vendor is not/and shall not at any point of time be owned or controlled by any director, or key managerial personnel, or approver of the outsourcing arrangement of the Banks, or their relatives. For the purpose of this clause, terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time.

c. Vendor shall not indulge in any activity that may result in reputational loss to the Bank or the reputation of Banks being compromised or weakened.

d. Vendor shall not do anything that will impede or interfere with the ability of Bank to efficiently oversee or manage its activities and /or of the RBI in carrying out its supervisory functions and objectives.

e. Vendor shall employ the same high standard of care in performing the services as would have been employed by the Banks if the activity was not outsourced to the Vendor.

f. Without prejudice to the obligation of the Vendor to perform the contract and without being bound to do so the Bank, shall have the right to intervene with appropriate measures to meet legal and regulatory obligations, which directions of Bank shall be complied by the Vendor without need for paying any additional fees or charges to the vendor.

g. Vendor shall promptly and without delay report to Bank any type of material adverse events including data breaches, denial of service, service unavailability, etc. and also those incidents required to be reported to the Bank to enable Bank to take prompt risk mitigation measures and ensure compliance with statutory and regulatory guidelines.

h. Vendor shall comply with the provisions of Information Technology Act, 2000, other applicable legal and regulatory requirements and standards including relating to protection of information of the Bank and the customer data.

i. Vendor shall ensure safe storage of data (as applicable to the scope of RFP) which storage shall be done only in India and in doing so, the extant regulatory requirements shall also be complied by the Vendor. Vendor shall also provide to the Bank from time to time the details of such data captured, processed, and stored.

j. Vendor is aware that any data/information being confidential, the Vendor shall not disclose or share any data/information with Bank's customer and/or any other party.

k. Bank shall be within its right to seek information from the Vendor about the third parties (in the supply chain) engaged by the Vendor which shall be provided by the Vendor forthwith.

l. Vendor hereby agrees and confirms that the Vendor shall be liable for the performance and risk Management practices of the Vendor and also of its sub-contractors.

m. Vendor shall comply with the directions issued by the RBI from time to time in relation to the activities outsourced to the Vendor.

n. Vendors agree and undertake to co-operate with the relevant authorities in case of insolvency/resolution of either of the parties. Further, the Vendor shall ensure availability of records to the Bank/RRBs and the RBI including in case of liquidation/ resolution of the Vendor.

o. Vendor hereby agree and undertake that the skilled resources of the Vendor who provide core services are considered as "essential personnel" so that required number of staff with back-up arrangements necessary to operate critical functions can work on-site during exigencies (including pandemic situations).

p. Vendor confirms that it has back-to-back arrangements with the OEMs relating to the said contract.

q. Vendor is aware that public confidence and customer trust in Bank/RRBs is a pre-requisite for Bank's/RRBs' stability and reputation and therefore the Vendor shall not do anything which will affect the same. Further, the Vendor shall ensure the preservation and protection of the security and confidentiality of the Bank's information and also of Bank's/RRBs' customer information which is accessed or in the custody or possession of the Vendor. Vendor shall also ensure that their employees/staff agents also maintain confidentiality of such information and Vendor shall ensure that any access to customer information by staff of the Vendor shall be strictly on need-to-know basis.

r. Vendor shall ensure that cyber incidents are reported to the Bank by the Vendor immediately without any delay, so that the incident is reported by the Bank to the RBI within the time frame stipulated by RBI.

s. Vendor shall ensure that they are able to isolate the Bank's and its customer's information, documents and records and other assets. This is to ensure that, in adverse conditions or termination of the contract, all such assets of the Bank, documents, record of transactions and information with the Vendor can be removed from the possession of the Vendor, or deleted, destroyed, or rendered unusable. In the event of termination of contract, the Vendor shall ensure safe removal/destruction of data and all records (digital and physical), as applicable. The Vendor shall cooperate fully with both the Bank and new service provider(s) to ensure there is a smooth transition. The Vendor shall not erase, purge, revoke, alter or change any data during the transition period, unless specifically advised by the regulator / Bank.

t. If the Vendor is operating in different jurisdictions, the Vendor shall abide by the legal, regulatory and government policies of not only the jurisdictions in which the Vendor is based but also of all the places where it is operating. Vendor shall also monitor the political, social, economic, and legal conditions of all such jurisdictions on a continuous basis, as well as establish sound procedures for mitigating the country and other risk. This includes, inter alia, having appropriate contingency and exit strategies.

Part 4 - Preparation of Bid

4.1 Language of bid

The Bid prepared by the Bidder, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and the Bank and supporting documents and printed literature shall be written in English.

4.2 Bid currencies

Bids are to be quoted in Indian Rupees only.

4.3 Documents establishing bidder's eligibility and qualifications

The bidder shall furnish, as part of its Bid, all the documents establishing the bidder's eligibility to Bid and its qualifications to perform the Contract. In case, bidder fails to submit any such documents along with their bid submission on GeM portal, bank reserve the right to reject the bid declaring the bidder as ineligible.

4.4 Period of validity of bids

Bids shall remain valid for a period of 180 days, from the date of opening of the Bid. A Bid valid for a shorter period shall be rejected by the Bank as non- responsive. In exceptional circumstances, the Bank may solicit the bidders' consent to an extension of the period of validity. The request and the responses thereto, shall be made in writing or through gem portal. The Bid security provided shall also be suitably extended. Bidder may refuse the request without forfeiting its Bid security.

4.5 Modification and withdrawal of bids

The Bidder may modify or withdraw its Bid after the Bid's submission, provided that written notice of the modification, including substitution or withdrawal of the Bids, is received by the Bank, prior to the deadline prescribed for submission of Bids. No Bid may be modified after the deadline for submission of Bids.

No Bid may be withdrawn in the interval between the deadline for submission of Bids and the expiration of the period of Bid validity. Withdrawal of a Bid during this interval may result in the bidder's suspension from participation in any future tenders of the bank for 1 year from the date of submission of Bid and/or forfeiture of Bid security.

4.6 Furnishing of information

The Bidder is expected to examine all instructions, forms, terms, and specifications in these documents. Failure to furnish all information required by the documents or to submit a bid not substantially responsive to the documents in every respect will be at the Bidder's risk and may result in the rejection of its bid. It shall be the duty of the bidder to upload the bid documents along with necessary documentary evidence on the GeM portal and Bank will not be accepting any additional documents during the evaluation process.

All the documents submitted on gem portal to be countersigned by bidder along with company seal. Documents be signed by the authorized representative of the bidder whose Power of Attorney is attached along with the bid.

4.7 Bidder's inquiries on gem tender & Bank's response

All enquiries from the bidders, related to this tender must be directed in writing / email and sent to the address/email ID's as per schedule mentioned in clause 2.2 of the tender document. Any clarifications / query received thereafter shall not be considered and will be ignored. The preferred mode of delivering written questions, to the aforementioned contact person would be through the email followed by letter in writing. In no event, Bank will be responsible in ensuring receipt of inquiries.

Sl.No	Page No.	Clause No.	Description	Clarification	Banks Response

Bank makes no commitment on its part to accept all the queries / suggestions / requests submitted by the bidders. Bank on reviewing the inquiries received from the bidders, wherever needed, will carry out necessary amendment to its tender clauses, if any, and the same will be posted in the GeM portal and no separate communication will be sent to individual bidders. However, Bank makes no representation or warranty as to the completeness or accuracy of any response made to the queries in good faith.

4.8 Authentication of erasures / overwriting etc.

Any inter-lineation, erasures, or overwriting shall be valid only if the person or persons signing the bid initial them.

4.9 Contacting the bank

No Bidder/OEM shall contact the Bank on any matter relating to its Bid, from the time of last date for submission of Bid till the time, the Contract is finalized. Any effort by a Bidder to influence the Bank in its decisions on bid evaluation, bid comparison or contract award will result in the rejection of the Bidder's bid.

4.10 Contents of Bid document

The Bidder must thoroughly study/analyze and properly understand the contents of this tender, its meaning and impact of the information contained therein. Failure to furnish all information required in this tender or submission of Bid not responsive to this tender in any respect will be at the Bidder's risk and responsibility and the same may finally result in rejection of its Bid. The Bank has made considerable effort to ensure that accurate information is contained in this tender and is supplied solely as guidelines for Bidders.

4.11 Bid Integrity

Willful misrepresentation of any fact within the Bid will lead to the cancellation of the contract without prejudice to other actions that the Bank may initiate against such defaulting bidder. All the submissions, including any accompanying documents, will become properties of the Bank. The Bidders shall be deemed to license, and grant all rights to the Bank, to reproduce the whole or any portion of their Bid document for the purpose of evaluation and to disclose the contents of submission for regulatory and legal requirements.

Part 5 - Terms & Conditions of contract

5.1 Bidder's responsibility vis-a-vis third party products /equipment's/ software

Bidder's responsibility vis-a-vis third party products /equipment's/ software If the proposal includes equipment or software marketed and / or supported by other companies / individuals, the bidder, as the prime contractor for the delivery, installation, and maintenance of the entire system, must declare that they possess the requisite permission / license for the equipment / software. The Bidder has to provide handholding support to the new incoming bidder in case of termination of the contract or completion of the contract for smooth handover of the operation. If Bidder fails to provide handholding support, Bank shall invoke the Bank Guarantee for performance after providing cure period as specified in clause 3.8 Performance Security.

5.2 Liabilities of the Bank

This tender is not an offer of the Bank, but an invitation for Bidder's responses. No contractual obligations on behalf of the Bank, whatsoever, shall arise from the tender process unless and until a formal contract is signed and executed by duly authorized officers of the Bank and the Bidder. However, until a formal contract is prepared and executed, this offers together, notification of award of contract and Bidder's written acceptance thereof shall constitute a binding contract with the vendor.

5.3 Amendments to GeM Tender Terms and Conditions

At any time prior to the deadline for submission of Bids, the Bank, for any reason, whether, at its own initiative or in response to a clarification requested by a prospective Bidder, may modify the Bidding Document, by amendment.

Notification of amendments/corrigendum will be put up on the GeM portal and shall be binding on all Bidders.

In order to allow prospective Bidders reasonable time in which to take the amendment into account in preparing their Bids, the Bank, at its discretion, may

extend the deadline for a reasonable period as decided by the Bank for the submission of Bids.

5.4 Confidentiality & Non-Disclosure Agreement

Bidder and its employees will strictly under not to communicate or allow to be communicated to any person or divulge in any way, any information relating to the ideas, the concepts, know-how, techniques, data, facts, figures and information whatsoever concerning or relating to the Bank and its affairs to which the said employees have access in the course of the performance of the contract. A non-disclosure agreement as per the format 7.16 provided in the tender should be executed by the Successful Bidder.

5.5 Formation of contract & execution of agreement

Acceptance of the Purchase Order / letter of intent constitute a valid contract. Bidder shall enter into a formal contract (as given in Format 7.19) with the Bank detailing terms and conditions set out in this tender and in Purchase order / Letter of Intent as per the format provided in the tender document. However, until a formal contract is signed by both the parties, agreement so constituted as detailed in this clause shall be construed as formal contract and shall be applicable. The Bank reserves the right to incorporate additional clauses as per legal and regulatory requirements of the Bank.

5.6 Assignment & Subcontracting

Bidder shall not be permitted to assign or subcontract the contract in full or part without prior written consent of the Bank. Bank's decision on permitting a subcontracting or assignment shall be final and binding on the successful bidder.

5.7 Termination Clause

The Bank, by written notice sent to the Company, may terminate the Contract, in whole or in part, at any time for its convenience by giving a notice period of not less than 90 days. The notice of termination shall specify that termination is for the Bank's convenience, the extent to which performance of the Company under the

contract is terminated, and the date upon which such termination becomes effective.

In the event of termination of the Agreement for the Bank's convenience, Service Provider shall be entitled to receive payment for the Services rendered (delivered) up to the effective date of termination. It is also clarified that the Vendor shall not be entitled to terminate the contract.

A. Termination for Default

The Bank, without prejudice to any other remedy for breach of Contract, by giving 90 days' written notice of default sent to the vendor, may terminate this Contract in whole or in part:

a) if the vendor fails to deliver the goods/ services within the period(s) specified in the Purchase Order
or
b) if the Bidder fails to perform any other obligations(s) under the Contract.

In the event of the Bank terminating the Contract in whole or in part, the Bank may procure, upon such terms and in such manner, as it deems appropriate, goods and related services, similar to those undelivered, and the vendor shall be liable to the Bank for any excess costs for such similar related services subject to the maximum cap of 10% of the undelivered portion. However, the vendor shall continue performance of the Contract to the extent not terminated.

Prior to providing a written notice of termination to Service Provider under clause 5.7.A, the Bank shall provide Service Provider with a written notice of 30 (thirty) days to cure such breach of the Agreement. If the breach continues or remains unrectified after expiry of cure period, the Bank shall have right to initiate action in accordance with above clause.

B. Termination for Insolvency

The Bank may at any time terminate the Contract by giving written notice to the Bidder, if the Bidder becomes bankrupt or otherwise insolvent. In this

event, termination will be without compensation to the Bidder, provided that such termination will not prejudice or affect any right of action or remedy, which has accrued or will accrue thereafter to the Bank.

C. Termination for Violation of Integrity Pact

The vendor agrees that if they make incorrect statement on the Integrity Pact, and found later, i.e., after awarding of the contract, the contract is liable to be terminated for such reason.

D. Termination for Other Actions

The bank has the right to terminate the agreement with immediate effect if the Vendor is blacklisted or in case any fraud, forgery, theft, robbery or any wrongful action/ inaction or breach of this agreement caused by Vendor or its agents or its employees.

In the event of termination of the outsourcing agreement for any reason in cases where the service provider deals with the customers of the bank, the same shall be given due publicity by the bank to ensure that the customers stop dealing with the concerned service provider.

5.8 Force Majeure

Notwithstanding the provisions of clauses 5.7 the Bidder shall not be liable for penalty or termination for default if and to the extent that it's delay in performance or other failure to perform its obligations under the Contract is the result of an event of Force Majeure. For purposes of this clause, "Force Majeure" means an event beyond the control of the Bidder and not involving the Bidder's fault or negligence and not foreseeable. Such events may include, but are not restricted to, wars or revolutions, fires, floods, pandemic and epidemics.

If a Force Majeure situation arises, the Bidder shall promptly notify the Bank in writing of such condition and the cause thereof. Unless otherwise directed by the Bank in writing, the Bidder shall continue to perform its obligations under the Contract as far as is reasonably practical and shall seek all reasonable alternative means of performance not prevented by the Force Majeure event.

Similarly, Bank shall also be not liable for any delay or failure in providing required infrastructure or support to the Bidder to perform its obligations under the contract where such delay or failure is the result of an event of Force Majeure. For purposes of this clause, "Force Majeure" means an event beyond the control of the Bank and not involving the Bank's fault or negligence and not foreseeable. Such events may include, but are not restricted to, wars or revolutions, fires, floods, pandemic and epidemics.

5.9 Copy Right/Licence Violation/Pre-existing work

The bidder shall explicitly absolve the Bank of any responsibility/liability for use of system/software delivered along with the equipment; (i.e. the bidder shall absolve the bank in all cases of possible litigation/claims arising out of any copy right/license violation.) for software (s) sourced either from third parties or from themselves.

All IPR including the source code and materials developed or otherwise obtained independently of the efforts of a Party under this Agreement ("preexisting work") including any enhancement or modification thereto shall remain the sole property of that Party. During the performance of the services for this agreement, each party grants to the other party (and their sub-contractors as necessary) a non-exclusive license to use, reproduce and modify any of its pre-existing work provided to the other party solely for the performance of such services for duration of the Term of this Agreement. Except as may be otherwise explicitly agreed to in a statement of services, upon payment in full, the successful bidder should grant Bank a nonexclusive, perpetual, fully paid-up license to use the pre-existing work in the form delivered to Bank as part of the service or deliverables only for its internal business operations. Under such license, either of parties will have no right to sell the pre-existing work of the other party to a Third Party. Purchaser's license to pre-existing work is conditioned upon its compliance with the terms of this Agreement and the perpetual license applies solely to the preexisting work that bidder leaves with Purchaser at the conclusion of performance of the services.

5.10 Limitation of Liability

1) The maximum aggregate liability of Service Provider, subject to clause 5.10.3 in respect of any claims, losses, costs or damages arising out of or in connection with this Agreement shall not exceed the total Order Value of the contract.

2) Indirect Damages - In no event shall either Party be liable for any indirect, consequential, or incidental losses, damages or claims including loss of profit, loss of business or revenue or lost savings or lost goodwill even if it has been advised of their possible existence.

3) The limitations set forth in Clause 5.10.1 above shall not apply with respect to:

   a) claims that are the subject of indemnification pursuant to infringement of third party Copyrights/third party Intellectual Property Right.
   b) damage(s) occasioned by the Gross Negligence or Wilful Misconduct of Service Provider;
   c) damage(s) occasioned by Service Provider for breach of Confidentiality Obligations;
   d) Regulatory or statutory fines imposed by a Government or Regulatory agency for noncompliance of statutory or regulatory guidelines applicable to the Scope of work and arising solely due to Gross Negligence and Willful Misconduct of the Service Provider.

For the purpose of clause 5.10.3.b and 5.10.3.d, "Gross Negligence" means any act or failure to act by a party which was in reckless disregard of or gross indifference to the obligation of the party under this Agreement is done and that has caused injury, damage to life, personal safety, real property, harmful consequences to the other party, which such party causing the damages knew, or would have known that if it was acting as a reasonable person, it would result in such act or failure to act for which such party is legally liable. Gross Negligence shall not include any action taken in good faith.

Notwithstanding the forgoing, Gross Negligence shall not include any action taken in good faith. "Willful Misconduct" means any act or failure to act with an intentional disregard of any provision of this Agreement, which a party knew or should have known if it was acting as a reasonable person, it would result in injury, damage to life, personal safety, real property, harmful consequences to the other party, but shall not include any error of judgment or mistake made in good faith.

5.11 Compliance To Labour Act

As per Government (Central / State) Minimum Wages Act in force, it is imperative that all the employees engaged by the bidder are being paid wages / salaries as stipulated by government in the Act.

5.12 Other Terms and Conditions

a. The Bank shall have the right to withhold any payment (pertinent to this contract) due to the Bidder in case of delays or defaults on the part of the Bidder. Such withholding of payment shall not amount to a default on the part of the Bank.

b. Bidder shall agree and keep the Bank indemnified against all claims, actions for loss, damages, costs, expenses, charges, including legal expenses (Attorney, Advocates fees included) which the Bank may suffer or incur on account of (i) Services Provider's breach of its warranties, covenants, responsibilities or obligations; and/or (ii) breach of confidentiality obligations mentioned in this Agreement; and/or (iii) any willful misconduct and gross negligent acts on the part of employees, agents, representatives or sub-contractors (if allowed) of Service Provider (iv) Any 3rd Party IPR infringement (v)any legal proceedings initiated by employees or other persons deployed by the Company (vi) proceedings by any statutory/regulatory/Govt. authority arising solely due to the Gross Negligence and Willful Misconduct of the Service Provider relating to the performance of its obligations . Service Provider shall make good the loss suffered by the Bank for any or all the loss caused to the Bank due to the above violations.

Indemnity for points (i) and (v) will be subject to the cap given in section 5.10 Limitation of Liability.

c. Bidder shall be responsible for managing the activities of its personnel and will be accountable for both. Bidder shall be vicariously liable for any acts, deeds or things done by their technical resources, employees, agents, contractors, subcontractors etc. that is outside the scope of power vested or instructions issued by the Bank.

d. Bidder shall be the principal employer of the technical resources, employees, agents, contractors, subcontractors etc. engaged by Bidder and shall be vicariously liable for all the acts, deeds, or things, whether the same is within the scope of power or outside the scope of power, vested under the contract to be issued for this tender.

e. Indemnification is only a remedy for the Bank. The successful bidder is not absolved from its responsibility of complying with the statutory obligations as specified above. Indemnity would be limited to court awarded damages and shall exclude indirect, consequential, and incidental damages, lost business, lost profits, loss of revenue, lost goodwill, or lost savings.

f. Bidder shall be held entirely responsible for the security and the protection of their workers at all times inclusive of non-working hours. They shall be deemed to have included for all costs associated therewith, including cost of insurance, medical expenses etc. if any. Bidder shall inform all his employees, technical resources, employees, agents, contractors, subcontractors etc. associated in execution of the work awarded under this tender to work in the specified area and they should not move around at other places of premises without any specific reason.

g. Service Provider shall undertake the responsibility to take all possible measures, at no additional cost, to avoid or rectify any issues which thereby results in nonperformance of software/ deliverables within reasonable time. The Bank shall report as far as possible all material defects to Service Provider without undue delay. Service Provider shall also undertake to co-operate with

other service providers thereby ensuring expected performance covered under scope of work.

h. Bidder or its authorized agents or its employees / technical resources shall not store or allow to store in the Bank's premises any goods, articles or things of a hazardous, inflammable, combustible, corrosive, explosive or toxic nature.

i. Bidder and its employees, technical resources, agents, contractors, subcontractors or its authorized agents shall provide full co-operation to other agencies working in the premises and shall follow the instruction of site in charge. No extra claims shall be entertained on account of any hindrance in work.

j. SB shall not be entitled to any compensation for any loss suffered by it on account of delays in commencing or executing the work, whatever the cause of delays may be including delays arising out of modifications to the work entrusted to it or in any sub-contract connected therewith or delays in awarding contracts for other trades of the Project or in commencement or completion of such works or for any other reason whatsoever and the Bank shall not be liable for any claim in respect thereof. The Bidder's nonperformance or delay's resulting from Bank's failure /delay to comply with its responsibilities and obligations will be excused and Bidder will not be liable for such non-performance or delays/failure.

k. It is well defined and understood that the labor or any employee or technical resources of the Bidder will have no right for claim of employment on the Bank.

l. No extra claim shall be entertained on account of all the redo of work on account of Bidder's negligence and resulting into make good of the damages or damaged portions during executing the job. All such cost shall be borne by the Bidder.

m. Bidder shall indemnify the Bank from all the acts & deeds on account of negligence by his employees, agencies, representatives or any person acting on his behalf.

n. Bidder shall take all risk Insurance coverage for its employees, technical resources, representatives or any person acting on his behalf during the contract period to cover damages, accidents and death or whatever may be.

o. Bidder should indemnify the Bank for Intellectual Property Rights (IPR) / copy right violation, confidentiality breach, etc., if any.

p. The Bank ascertains and concludes that everything as mentioned in the tender document or its addendum circulated to the bidders and responded by the bidders have been quoted for by the bidders, and there will be no extra cost associated with the same in case the Bidder has not quoted for the same.

q. Queries received from any bidder/OEM after the scheduled date and time of the submission of bid will not be entertained /acted upon. However, the Bank shall at its own discretion may respond to the queries received after the cutoff date for pre-bid query submission.

r. The Bank will examine the Bids to determine whether they are complete in all respects, whether required information are furnished in stipulated formats, whether the documents have been properly signed by the authorized signatories, EMD for the required amount is provided with necessary validity period is available and whether the Bids are in order. The Bank may, at its discretion, waive any minor non-conformity or irregularity in a Bid which does not constitute a material deviation.

5.13 Resolution of Disputes

The Bank and the Bidder shall make every effort to resolve amicably by direct informal negotiations any disagreement or dispute between them on any matter connected with the contract or in regard to the interpretation of the context thereof.

In case of any disagreement or dispute between the Bank and the Bidder which remains unresolved after discussions, the dispute will be resolved in a manner as outlined hereunder.

1. In the event of any dispute between the bank and the contractor relating to those contracts where Integrity Pact is applicable, in case both the parties are agreeable, they shall try to settle dispute through mediation before the panel of IEMS in a time bound manner. The fees/expenses for dispute resolution shall be equally shared by both Bank and Bidder.

In case the dispute remains unresolved even after mediation by the panel of Independent External Monitors, such differences and disputes shall be referred, at the option of either party, to the arbitration of one single arbitrator to be mutually agreed upon and in the event of no consensus, the arbitration shall be done by three arbitrators, one to be nominated by the Bank, one to be nominated by the Bidder and the third arbitrator shall be nominated by the two arbitrators nominated as above. Such submission to arbitration will be in accordance with the Arbitration and Conciliation Act 1996. Upon every or any such reference the cost of and incidental to the references and award shall be at the discretion of the arbitrator or arbitrators or Umpire appointed for the purpose, who may determine the amount thereof and shall direct by whom and to whom and in what manner the same shall be borne and paid. **In case of Arbitration the same shall be done in accordance with the Rules of Arbitration of the "SCOPE" and the award made in pursuance thereof shall be final and binding on the parties.** Courts of Chennai city shall alone have jurisdiction to the exclusion of all other courts, in respect of all differences and disputes envisaged above.

5.14 Right to audit:

Bank has the right to audit the application or the application development process and control by the bank team or by engaging any third-party entity in compliance with bank's security policy not limiting to VAPT alone. Security policy of the bank will be shared with the successful Bidder.

5.15 Corrupt and fraudulent practices:

a) As per Central Vigilance Commission (CVC) directives, it is required that Bidders/Suppliers/Contractors observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of this policy:

b) "Corrupt Practice" means the offering, giving, receiving or soliciting of anything of values to influence the action of an official in the procurement process or in contract execution

AND

c) "Fraudulent Practice" means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of the Bank and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Bank of the benefits of free and open competition.

d) The Bank reserves the right to reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question.

Bank reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing the contract.

5.16 Solicitation Of Employees

During the term of the Contract and for a period of two years after any expiration of the contract period/termination or cancellation of the Contract, both the parties agree not to hire, solicit, or accept solicitation (either directly, indirectly, or through a third party) for their employees directly involved in this contract during the period of the contract and two years thereafter, except as the parties may agree on a case-by-case basis. The parties agree that for the period of the contract and two years thereafter, neither party will cause or permit any of its directors or employees

who have knowledge of the agreement to directly or indirectly solicit for employment the key personnel working on the project contemplated in this proposal except with the written consent of the other party. The above restriction would not apply to either party for hiring such key personnel who

I. initiate discussions regarding such employment without any direct or indirect solicitation by the other party; or
II. respond to any public advertisement placed by either party or its affiliates in a publication of general circulation

5.17 Exit Clause

The Bank reserves the right to cancel the contract in the event of happening one or more of the following conditions by providing a cure period of 30 days to the bidder to rectify such breaches:

1. Failure of the Bidder to accept the contract and furnish the Performance Bank Guarantee.
2. Delay in delivery beyond the specified period.
3. Delay in completing implementation/customization and acceptance tests/ checks beyond the specified periods.
4. Serious discrepancy in functionality to be provided or the performance levels which have an impact on the functioning of the solution
5. In addition to the cancellation of contract, Bank reserves the right to appropriate the damages through encashment of Bid Security /Performance Guarantee given by the Bidder after providing the cure period specified in clause 3.8 (Performance Security).

5.18 Right to Use Defective Product

If after delivery, acceptance, and installation and within the guarantee and AMC period, the operation or use of the product is found to be unsatisfactory, the Bank shall have the right to continue to operate or use such product until rectification of defects, errors or omissions by partial or complete replacement is made without interfering with the Bank's operation.

5.19 Name and Contact Details of Independent External Monitors:

As per the directions of Central Vigilance Commission, all public sector banks are required to adopt Integrity Pact in any procurement valued above the threshold value. Bidder shall submit Format 7.12 on a stamp paper duly signed by their authorized signatory along with the technical bid. Indian Overseas Bank have appointed the IEM for this purpose whose details are hereunder:

Shri Prashanta Kumar Agrawal, IPS (Retd.) H. N. 762, Sector 17, Faridabad, Haryana-121002 Mobile: 8054932121 Email: agrawal.prashanta@gmail.com

5.20 Commissioning of Solution

The successful bidder is responsible for all unpacking and installation of Products. The successful bidder will test all system operations and accomplish all adjustments necessary for successful and continuous operation of the software at all installation sites.

5.21 Successful Commissioning of Project

On successful completion of the acceptance tests, receipt of deliverables, etc., and after the solution runs successfully after going live and the Bank are satisfied with the working of the solution/system, the successful commissioning certificate in Format 7.17, signed by the Supplier and the representative of the Bank will be issued. The date on which such certificate is signed shall be deemed to be the date of successful commissioning of the system/solution proposed.

5.22 Technical Documentation

The Technical Documentation involving detailed instruction for operation and maintenance of the hardware (if any) and software is to be delivered. The language of the documentation should be in English.

5.23 Payment schedule

I. General Terms:

1. Payment shall be released by the Bank's Central Office, Information Technology Department, based on confirmation by the user department.
2. The successful bidder should submit the following documents before raising the invoices:
    - Service Level Agreement (one time)
    - Non-Disclosure Agreement (one time)
    - Bank Guarantee (one time)
    - Background Verification of Deployed Resources
    - Attendance signoff from the user department.
3. Payments shall be released after deducting applicable NEFT / RTGS & TDS Charges.
4. Payments are subjected to successful and satisfactory review of all deliverables and activities by the Bank.
5. No advance payment will be released against purchase order.
6. The Penalty, Liquidated Damage (LD) will be deducted subject to service level agreement of this tender. Payment will be released after deducting the applicable taxes and TDS.
7. Successful Bidder agrees that Bank to hold or deduct the amount from its invoices, for non-performance or part performance or failure to discharge obligations under the Contract.
8. All the payments to the bidder shall be subject to the report of satisfactory accomplishment of the task concerned / performance/ delivery of the services to the satisfaction of Bank for this purpose.
9. Under no circumstances Bank shall be liable to the successful bidder and/or its employees/personnel/representatives/agent etc. for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of the Contract.
10. Bank reserves the rights to dispute/deduct payment/withhold payments/further payments due to the successful bidder under the Contract, if the successful bidder has not performed or rendered the Services in accordance with the provisions of the Contract which the Bank at its sole discretion adjudge.

11. All out of pocket expenses, travelling, boarding and lodging expenses for the entire Term of this tender and subsequent agreement is included in the amounts quoted and the bidder shall not be entitled to charge any additional costs on account of any items or services or by way of any out-of-pocket expenses, including travel, boarding and lodging.
12. The bidder's request(s) for payment shall be made to the Bank in writing (Invoice) accompanied by the monthly attendance and confirmation of satisfactory performance by the authorized official of the bank for which payment is being claimed.
13. Bidder is responsible for the activities of its personnel and will hold itself responsible for any misdemeanors.
14. Bidder shall treat as confidential all data and information about the Bank, obtained in the process of executing its responsibilities, in strict confidence and will not reveal such information to any other party without prior written approval of the Bank as explained under 'Non-Disclosure Agreement' of this tender.

II. License delivery-Payment terms:

The payment shall be released in the following phase.

a) **50%** of the order value of the software along with applicable taxes on actual basis will be paid on successful user acceptance after delivery, installation of the ordered items, after realizing penalty charges for late delivery and / or late installation, if any. The claim of payment should contain proof of delivery, installation note and User Acceptance Report signed with date by user department.

b) **40%** of the order value of software along with applicable taxes on actual basis will be paid on successful Go-live operation in production after installation & configuration of the ordered items, after realizing penalty charges for late delivery and / or late installation, if any. The claim of payment should contain proof of delivery, installation note, and Go- live Report signed by user dept.

c) Remaining 10% of the cost along with applicable taxes would be paid after three months from Go-live and successful operation.

d) ATS on software item shall be paid in yearly basis, in advance.

III. Implementation – Payment terms

100% of the implementation cost, will be payable on successful implementation with all the functionalities of the said software and acceptance sign-off from the Bank realizing penalty charges, if any.

IV. Onsite Support - Payment terms

The fees for Facility Management Resources would be payable on monthly in arrears basis, at the end of each month on actuals, as per the bill submitted by the Bidder and on verification of the Bank after realizing penalty charges, if any.

There shall be no escalation in the prices once the prices are fixed and agreed to by the Bank and the vendor during the period of contract. Payment will be release by IT Dept., as per above payment terms on submission of mentioned supporting documents.

5.24 Powers to Vary or Omit Work

1. No alterations, amendments, omissions, additions, suspension or variations of the work (hereinafter referred to as variation) under the contract shall be made by the successful Bidder except as directed in writing by Bank. The Bank shall have full powers, subject to the provisions hereinafter contained, from time to time during the execution of the contract, by notice in writing to instruct the successful Bidder to make any variation without prejudice to the contract. The finally selected Bidder shall carry out such variation and be bound by the same conditions as far as applicable as though the said variations occurred in the contract documents. If any, suggested variations would, in the opinion of the finally selected Bidder, if carried out, prevent him

from fulfilling any of his obligations under the contract, he shall notify Bank thereof in writing, with reasons for holding such opinion and Bank shall instruct the successful Bidder to make such other modified variation without prejudice to the contract. The finally selected Bidder shall carry out such variation and be bound by the same conditions as far as applicable as though the said variations occurred in the contract documents. If the Bank confirms its instructions, the successful Bidder's obligations shall be modified to such an extent as may be mutually agreed between the Bank and Successful bidder, if such variation involves extra cost. Any agreed difference in cost occasioned by such variation shall be added to or deducted from the contract price as the case may be.

2. In any case in which the successful Bidder has received instructions from the Bank as to the requirements for carrying out the altered or additional substituted work, which either then or later on, will in the opinion of the finally selected Bidders, involve a claim for additional payments, such additional payments shall be mutually agreed between the Bank and the Successful bidder in line with the terms and conditions of the order.

3. If any change in the work is likely to result in reduction in cost, the parties shall agree in writing so as to the extent of change in contract price, before the finally selected Bidder(s) proceeds with the change.

5.25 Bank's right to accept any bid and to reject any or all bids:

The Bank reserves the right to accept or reject any Bid in part or in full or to cancel the bidding process and reject all Bids at any time prior to contract award as specified in Award Criteria and Award of Contract, without incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for the Bank's decision.

5.26 Right to verification:

The Bank reserves the right to verify any or all of the statements made by the Bidder in the Bid document and to inspect the Bidder's facility, if necessary, to establish to its satisfaction about the Bidder's capacity/capabilities to perform the job.

5.27 Modification of Scope of Work

During the evaluation stage, Bank shall reserve the right to modify the scope of work/components to be supplied in the tender, and the same shall be binding upon all the participating bidders to agree to such modifications. Cost implications if any on account of such modifications shall be mutually agreed with the successful bidder before/after issuance of purchase order. Any agreed difference in cost occasioned by such variation shall be added to or deducted from the order value as the case may be.

5.28 Manufacturer's Authorisation Form

Manufacturer's Authorisation Form/s have to be submitted in the format 7.18 provided in the tender by all the bidders. In case of variations in the format, Bank shall reserve the right to accept or reject such Manufacturer's Authorisation Form/s submitted by bidders and Bank's decision on this shall be final and binding on the bidders.

Bank has sought for Manufacturer's Authorisation Form (MAF) from the bidders to ensure that bidder is an authorised partner and Bank will be provided with continuous support from Original Equipment Manufacturer/ Original Software Developer, covering the entire period of the contract.

In the event, it comes to the knowledge of the Bank that any OEM/s has revoked the MAF issued to the participating bidders after submission of the bid, Bank reserves the right for seeking similar solution, acceptable to the Bank, with supporting MAF of the alternative OEM/s, subject to no upward change in the commercials already submitted. In the event of bidder not being able to substitute the originally submitted OEM/s solution as mentioned above, the bidder shall be disqualified.

5.29 Activities carried out/assigned to OEM

Activities as per scope of the Work carried out by the OEM/s shall not be construed as sub-contracting. However, the responsibility of proper execution of the contract as per tender terms and conditions of the contract; and the ownership for all the acts, deeds, commission and omission of the OEM/s engaged by the bidder will solely rest with the successful bidder.

5.30 Escrow Arrangement

Bidder has to agree to keep source code of proposed solution with approved / recognized escrow agency under escrow arrangements mutually acceptable to the bank and Bidder for entire project period. Cost of the escrow arrangement to be borne by Bank. Contract will be signed on mutually acceptable terms with bank and escrow agent.

The application software should mitigate Application Security Risks; at a minimum those discussed in OWASP top 10 (Open Web Application Security Project). The Bank has right to Audit the Application / Source Code by suitable Security Auditor. The Bidder shall provide complete and legal documentation of all subsystems, licensed operating systems, licensed system software, and licensed utility software and other licensed software.

The Bidder also provide licensed software for all software products whether developed by it or acquired from others. The Bidder shall also indemnify the Bank against any levies / penalties on account of any default in this regard.

In case the Bidder is coming with software, which is not its proprietary software, then the Bidder must submit evidence to the satisfaction of Bank in the form of agreement it has entered into with the software vendor which includes support from the software vendor for the proposed software for the full period required by the Bank.

Part 6- Scope of Work

6.1. Scope of Work

Bank proposes to implement National Grid CTS Solution at Bank's DC at Chennai & DR at Hyderabad. The selected bidder is expected to understand the existing CTS operations of the Bank and implement the CTS solution in Banks DC and DRS in CAPEX Model. The National Grid CTS solution will have following features: -

1. Establishment of CTS solution at Banks DC and DRS to provide ease of CTS operation to PAN India Bank Branches / Centralised Back Office locations with Software for the period of contract.
2. Enterprise-wide license for CTS solution should be provided.
3. Encrypted Web based National Grid CTS Solution.
4. Interface with centralised Grids CHI/DEMs/NPCI/Banks CBS solution.
5. Compliance with IT security and IS audit standards issued by regulatory bodies.
6. End to end routing of transaction from scanning to submission of the same to respective CHI/DEM.
7. AI-based data entry / data enrichment services for inward clearing to be provided as part of the solution.
8. System should have feature to use Centralized Positive Pay System (CPPS), which has already been implemented by NPCI w.e.f. 01.01.2021
9. Application should have features of Continuous Clearing guidelines issued by NPCI/RBI using API based approach.
10. FMS Services and Training to be provided as part of the contract
11. Data entry support for Inward clearing with bank defined fields.

The features mentioned are indicative only. The proposed solution should offer all the latest features and the functionalities mandated by the regulatory authorities such as RBI/NPCI etc.

SCOPE OF WORK:

i. The successful bidder shall design, size, supply, install, integrate, commission and maintain Centralized Cheque Truncation System for National Grid in CAPEX model at Banks DC at Chennai and DRS at Hyderabad. Bank is

currently using OPEX model for Inward clearing operations and CAPEX model for Outward clearing which is in house developed.

ii. Bidder should supply Enterprise-wide license for Centralized National Grid web-based CTS Solution, and it should have unrestricted use across organization and its clients irrespective of locations or numbers of users for the contract period. In no way licenses should be a hindrance in daily working of the Bank. No freeware/ open-source software should be used. The proposal should cover customization/implementation/integration. No extra charges shall be borne by Bank.

iii. The proposed solution should be uniform & integrated throughout the Bank. The proposed solution must handle CTS clearing load of all branches on CAPEX model. The solution should be implemented in web mode with role-based access to users located at various Branches/ Hubs /Offices and also Bank's Clients.

iv. As on date, all 3500+ branches of Bank scattered geographically in different parts of the country is integrated to our CTS application and it may increase in future. The successful bidder needs to implement CTS across all future opening branches also and solution should be scalable enough to support the load without any impact on the CTS operations.

v. The proposed CTS Solution should meet all the existing and future regulatory guidelines / specified by RBI / other Regulatory authorities directly or through NPCI with no extra cost to the Bank during the contract period. The Hardware sizing provided by the bidder should ensure that the solution is maintaining the uptime of 99.95% desired by the Bank without any negative impact on High-Speed processing of the Instruments.

vi. Bidder should ensure that CTS application related patches are applied on a period basis in line with the periodic patch released by respective OS OEMs and complied with IT security & IS audit standards issued by Government/ IBA/Bank/RBI and other regulatory bodies directly or through NPCI. VAPT, IS audit, RBI audits and other audits of regulatory Bodies are conducted in Banks DC and DR Site regularly. Observations and gaps should be timely complied at no additional cost to the Bank during the contract period.

vii. The successful bidder is also required to provide Data entry and Data enrichment services UV/ ICR/OCR as part of the contract. The software components to be used for enrichment and onward submission to NPCI will be provided by the bidder at its own cost. The data entry services shall be offered from the banks premises in Chennai / Delhi or any other place as decided by the Bank to ensure BCP operations and as decided by the Bank.

viii. The CTS Solution will be accessed and operated from Bank's offices /CTS Centres/ Branches / Off-site Locations. There should be stringent adherence to authenticate the source of inputs.

ix. CTS solution shall support scanner feature of cheque images in grey, embedded, black & white and UV. The bidder has to make sure that the proposed CTS application should be compatible with all latest available cheque scanning devices including handheld devices (Mobile/Tablet etc.).

x. The selected bidder should monitor the entire CTS solution, timely submission of CTS clearing, configuration changes, version up- gradations, performance monitoring, troubleshooting, bug fixing, backup, restoration of data from back-up media as and when required, DC-DR sync, patch installation and liaison with bank officials for various support issues etc., assisting bank officials in switching to DR site in case of system failure and conducting DR drills in coordination with all stakeholders for scheduled and un scheduled.

xi. Bidder will be responsible for supply, installation and implementation of necessary tools & support services for migration of the data (including migration of old data for the last ten years) from the existing CTS systems of the Bank and also for first time Master creation for the respective requirements of the bank/branches/hubs/CH.

xii. Bidder should integrate the CTS application with Clearing House Interfaces, DEM, CBS application, external applications interfaces and also carry out time to time modifications for implementing Government/IBA/RBI/other regulatory body guideline directly or through NPCI during the contract

period. Bank Specific requirement will be mutually discussed and added till SRS finalization at no additional cost.

xiii. The Bank has DEM servers and licenses at Banks DC and DRS and the solution should be integrated with the same.

xiv. The CTS application should support automatic integration with various Systems through straight through processing (STP) / upload functionality (optional) the process as desired by RBI/ any other Regulatory authority directly or through NPCI.

xv. The Systems are listed below:

- Finacle - Core Banking System.
- Bank's Messaging System.(SMS/email)
- Bank's Intranet.
- DEM
- Cheque Deposit Kiosks
- Cheque Scanners (any make/model working in the Banking Industry)
- Any other system as required by the Bank from time to time.

Provide APIs for integrations with various External Systems as required.

xvi. Bidder has to ensure that proposed CTS Application is capable of Image capturing in hybrid environment i.e. distributed as well as in central processing environment (at various Cheque collection points or branches / Central processing /service branches level), Workflow based Cheque clearing transaction data processing involving data entry (i.e. Authorization levels involving Maker Checker concept), Cheque clearing transactional data transfers and receipts, Integration with Bank's Core Banking solution, Integrating with RBI / NPCI's CHI/DEM system, Automated Cheque returns processing, Implementation of Signature verification system and archival system, Images and transaction data Storage and Retrieval solution, Integration with CBS for automated upload clearing data / Clearing Files, Incremental Signature and Account Master retrieval as per Bank requirement.

xvii. It is the responsibility of selected bidder to provide Daily/Monthly/Yearly Cheque clearing reports, Exceptional reports, Detailed/Summary level reports, Audit Trail reports etc. Apart from above, bidder has to provide the customized reports as and when demanded by the Bank in any format without any additional charges to Bank.

xviii. Bidder must ensure that the proposed solution is capable of capturing & verifying the information based on the security features defined in CTS 2010 standard and give alert on suspicious cheque with detailed report. The report should clearly mention noncompliance standards and reason such as UV image , Bank logo , alteration / correction of text / date / signature etc. Bank may conduct POC (Proof of Concept) for the same. These features should be made available for all batches of cheque uploaded by each center / branch/grid . Such alert and report be provided for each branch / center / grid for their immediate action. The instrument so identified as non-complaint of CTS 2010 standards shall not be forwarded / submitted for clearing payment to RBI / NPCI.

xix. The Proposed Solution should be capable of identifying and capturing the information i.e. UV Check and Torn & Pasted (made up) cheque

xx. The Solution should detect and provide alert for any Non-CTS Cheque being received in the system.

xxi. In case, the Solution receives the high value cheque above the threshold, the solution should throw an alert to the customer. The Solution should throw an alert/pre-authorization/confirmation to/of the customer through Omnichannel banking / API based or intimation at the branches when issuing a high value cheque.

xxii. The Solution should also keep a track on the number of cheques processed by the officials, bank should reserve the right to modify the threshold of number of cheque that can be processed by the officials per day (like 500-600 cheque per day).

xxiii. The System should be able to detect and capture the details whether the cheque is genuine/ cancelled cheque. The Solutions should be able to capture the cheque details (like Date, Name/Bearer, Amount, Cheque

Number, MICR Code etc.) as per the bank's requirement. Presently bank is not having the SAN number in cheques . proposed solution should be able to capture SAN number if implemented by bank in future.

xxiv. The system should have the capability to generate any other report other than the standard clearing related reports required for day to day working. Minimum clearing reports that system should be capable to generate based on filtration criteria like Grid wise / Region wise / Centre wise / branch wise / zone wise / date wise / instrument and amount wise / customer wise / session number wise etc.

xxv. The security, quality and integrity of data is to be ensured by the bidder and any breach or compromise in quality or integrity will be sole responsibility of the bidder. The bidder has to ensure that only the permitted portion of the Cheque image should be visible to the agent engaged for the data enrichment activity. The cheque image fields not relevant for the Data enrichment activity should not be visible under any circumstances .Also, in addition to the security features deployed in the technology, Bidder's operational procedures should ensure protection of the Bank from business risks (from system error, human error, negligence and mismanagement), and fraud risk (loss to earnings or capital due to intentional deception by employees, customers, agents, external entities etc.).

xxvi. Vendor should Integrate the proposed solution with existing Finacle version 10.2.25 or higher version, without any additional cost during the contract period (Warranty/AMC).

xxvii. The Bidder shall commit that the key personnel (FMS) to be employed for implementation of CTS are qualified enough with adequate experience and qualification to handle a project of this nature and involved in similar implementations and that once assigned to the project will not be moved out of it, except for reasons beyond the control of the Bidder and prior approval of the Bank.

xxviii. Bidder should provide the data entry services through dedicated resource for key in the fields defined by the bank during inward clearing process.

Inward clearing average Volume will be approx. 50000 instruments per day. peak volume will be 75000 instruments.

xxix. The Bidder must provide undertaking to make all software changes/ to provide software patches, as well as any other requirements specified by the Government/ IBA/ RBI other regulatory bodies directly or through NPCI from time to time, without any additional cost to the Bank within the term of Agreement and extended terms if any.

xxx. Data capture requirements for outward clearing:-

- The scanning of outward clearing instruments will be carried out by Bank's Officials.
- The solution should display the scanned image of the Cheque along with the captured data like Instrument date, MICR Code, Cheque number, account number, Tran Code, amount using OCR / ICR / AI solution. The captured data shall be sent to the Banks CBS solution to confirm various validations like valid account number, account name etc. Bank team will perform the QC (Quality Check) of the details on the cheque with the captured data and make the necessary corrections in the data, if required. Also, the operator will maintain the MICR repair and follow the guidelines issued by NPCI in this regard.
- Verified instruments should be bundled and push to NPCI on real-time basis.

xxxi. Data captured requirements for Inward clearing:-

- The solution should utilize automation to scan through the cheque and capture the fields like cheque date, cheque amount, account number, payee name, SAN etc. The AI solution should provide data accuracy rate for each of the captured fields. On this basis, provision should be provided to the data entry team to carry out any corrections in the data if required for the fields such as instrument date, account number, SAN, cheque number, payee name etc.
- The data entry operator will also enter the payees name where incorrect payee name is found, or irrelevant payee name is entered.

Payee name should be same as written on face of image of the cheque.

- The data entry operator will perform the QC (Quality Check) and make the necessary corrections in the data, if required.
- Data entry operator will perform technical verification of all inward cheques viz:- presence of signature on cheque, whether a cheque is postdated/Undated or Stale. Based on above mentioned conditions a separate file for failed technical verification should be provided along with reason of technical rejection.

xxxii. Automated signature verification

- Successful bidder is required to train the solution in existing cheque images, signatures available in CBS. The proposed solution must be capable enough to extract signature from signature card available in CBS.
- If the signature images available in CBS is of low quality / resolution, the solution has to deal with such cases & process accordingly to obtain satisfactory result. A report of such cases to be provided separately.
- The signature card image available in CBS contains customer's signatures in any format, Bank officer signature, Branch stamp, date, mode of operations (handwritten), cross mark & other printed elements. The solution must be capable enough to identify / extract customer's signature & match it with signature present in cheque.
- The solution must be capable of self-learning, continuous learning using processed data and evaluating the models using performance metrics like accuracy, precision, recall etc.
- The solution should also have custom record fetching mechanism i.e. for any root cause analysis there should be an option to fetch response of matching a single cheque image. Also, the cheque & signature image on which system has processed should be visible in front end utility of solution for further analysis. Unique Signature ID, date of signature uploaded in Finacle, fetched from CBS should also be available for further analysis.

- In CBS there are instances where more than one signature images are available. In such cases, the solution should consider latest image only. Also, at any later stage if Bank wants to match signature in cheque from all the available signature images in CBS, solution should be capable enough to do proceeding accordingly & provide the signature image sequence number/ image ID & image created date with which the solution has matched with cheque image & provide result in extract file.

6.2. Functional & Technical Requirements

S.No.	Particulars	Bidder's Compliance (Y/N)	Bidder's Remarks
1	Systems should conform to the requirements of CTS 2010 standards and the IT Act 2008 and the Negotiable Instruments (Amendments & Miscellaneous Provisions) Act 2002 and Payment & Settlement Act. 2007 and its subsequent amendments, for recognition of images as valid instruments for payment by the Drawee Banks and all other applicable guidelines issued by RBI from time to time.		
2	The Bidder should provide CTS solution including all related tools to host centralized CTS at Banks DC and DR in CAPEX Model.		
3	The system should be ready for implementation of continuous clearing process in API based approach as stipulated by NPCI		
4	The system proposed shall support multiple sessions for the four legs of clearing process -inward clearing,		

	inward return, outward clearing and outward return along with extension as well as Blockage handling. Must be compatible with the RBI/NPCI Clearing House (CH), Clearing House Interface (CHI/DEM) system and the core banking software of the bank.		
5	System should be compatible to handle all Cheque Scanning devices available with the major manufacturer at present and capable to integrate with all types of Operating Systems. The Bidder has to integrate all the scanners on all desktop versions available at present within the Bank/Branches/Clients and in future.		
6	The point of Physical Instrument truncation could be at the Branch(s) / Hub / Centralized Clearing Units (CCUs)/Clients. Bank may adopt a hybrid model (cluster or de-centralized model) for capturing images of Instrument from various locations. The solution need to be flexible enough to handle the same		
7	System should be capable of handling minimum 10000 instruments per hour during Data Entry and Verification Processing. System should also be capable for minimum 10000 instruments per hour for Outward Clearing Files (CXF/CIBF) generation in the specified format of RBI/NPCI.		
8	Shall have seamless integration to the core banking system in all the legs of clearing		
9	Should provide provision for outward posting files in different levels and segregation should happen at point of		

	capture itself, depending on Bank's / Clients / Branches requirement: · Cheque Wise · Deposit Slip wise (if required) · Account Wise etc.		
10	Complete reconciliation reports up to transaction level and summarized based on clearing types and the clearing process types and able to generate necessary journal entries to the accounting system (Daily / Monthly / Yearly).		
11	Capable of routing specific instruments like Dividend warrants (DW), Demand Draft (DD) /Pay Order (PO), Quick Cheques(QC), Paper to Follow (P2F) etc, to specific Clearing House System and separate queues in system to be provided as per Bank's requirement.		
12	Archival system to store data, images and logs of each and every transaction as per periods defined by the Bank and support proper archival and retrieval mechanism spanning minimum 10 years.		
13	System should have proper mechanism for extraction and auto transmission of inward clearing for the respective Sub-member Banks (all types). Sub-Member Banks will be accessing the DEM system and process their inward clearing and mark returns as per their requirements.		
14	All Clearing reports, Return memo, posting files is to be generated from the system along with manual generation feature and facility for automatically transmission through Secured channel.		
15	Transactions pertaining to the Bank and its Clients should be recorded		

	properly with complete Audit trail in the Centralized CTS Solution and there should be easy retrieval for the history information through front end enquiry screens for all types of Clearing cycles.		
16	Transaction number should be generated automatically in the system without any manual intervention for the Bank's and Corporate Clients. Every transaction number should be unique for each instrument.		
17	Should conform to all the statutory regulatory norms as per RBI / Govt. / directly or through NPCI from time to time, should be provided without any additional cost to the Bank		
18	The user interface for Branch operations/ central Branch Operations / Corporate Client should be browser based only.		
19	Already processed batch file or instruments should not be available for processing again.		
20	Should be possible to process high value instruments separately for scrutiny for both Outward and Inward Clearing instruments. The cut off amount for high value should be user definable and Controllable.		
21	Various types of segregation and view / report on business rules should be possible in all clearing modules. Segregation can be based on: · Session wise · Instrument Number · Amount · Account type · Transaction code · Return Rejection codes		

	· Presenting bank / Drawee Bank etc		
22	System should provide a Document Management facility to store the Instrument(s) with unique reference numbers for easy retrieval at later stages.		
23	System must have a Login and password for each user and various user levels (enterer, verifier, exception approver, administrator, etc.) for logging into the system.		
24	Compulsory periodic changing of passwords for all the users at a parameterized period should be available and solution should prompt users to change password prior to the expiry date.		
25	System should be configurable to handle the password policy followed by the Bank.		
26	System must maintain proper log including date, time, terminal number of each operation, financial and non-financial, done by every user and the same should be appended to transaction data or a separate log should be maintained. Retrieval of Audit logs should be simple and only viewable to the authorized users		
27	System should have a special interface for auditors and IT users where access to all data would be allowed without any modification or change permission.		
28	System should have capability to perform archival of storage for the period prescribed by RBI/NPCI (Min. 10 years) and retrieval purposes of data and		

	images. The solution should provide storage / archival solution with proper quality of data / image along with logs and audit trail and reports / MIS.		
29	System should have in-built capability, features & interface for handling Business Continuity Plan and capable to setup the solution at Disaster Recovery Sites DR.		
30	Auto-Real time Replication between DC & DR should be available with proper monitoring process. In case of any disaster, entire solution should be capable to handle immediate switchover from Primary to DR Sites and Vice-versa without any kind of manual intervention and user level changes.		
31	System should be scalable to handle on an average 100000 cheques per day.		
32	There should not be any kind of performance downgrade/issues related to increase in concurrent users.		
33	The system should support centralized(for inward) and decentralized(for outward) processing without any geographical restrictions		
34	The proposed solution should have in-built Dual Verification system for Outward Clearing, which should be configurable for parameters like amount / user volume etc.		
35	The CTS architecture must be scalable and shall support increasing number of users and concurrent users.		
36	The system must support 24-hours x 7 days x 12 months nonstop continuous processing.		
37	Customer Data security should be in-built in the system.		

38	System should be capable to handle splitting/segregation of records for proper distribution of workload.		
39	Detailed status summary of processing of cheques (stages) to be made available by the system for monitoring purpose in the form of dashboards.		
40	System should be able to generate reports from archived data as well as in the production environment.		
41	Should be able to generate cheque return memo along with image of the instrument in the report format branch-wise and individual instrument-wise as well.		
42	Should provide online interface to extract data from the Clearing and truncation system to feed Bank's other application on need basis.		
43	Purging details should be captured to store the time and data contents in host system.		
44	Possibility of sending emails of images and data records automatically by the system. Direct connectivity to e-mail should be available through user interface for sending details, advices, etc. to Branches / Corporate Customers.		
45	The user-interface screens should earmark and validate mandatory fields, which must be entered before submitting a transaction.		
46	Facility to auto-lock/Screen timed out should be available with configurable feature.		
47	The solution should also be compatible and integrate/ handshake/ interface with all third party software / middleware of the Bank.		

48	The solution should have features / tests/ mechanism to initiate or perform fraud prevention/detection for tampered/ Xerox (photocopy) / fake instrument through positive pay solution at the time of scanning. It should read MICR codeline and inspect each image for various IQA parameter.		
49	System should have ICR/OCR capabilities to capture any given field present on the instrument. The fields can be handwritten or printed and could be present on the instrument. · Amount in figures · Instrument date · Payee name · Account Number · Amount in words		
50	The system should provide interfaces and automated checking for the new CTS Instrument standards. i.e UV and QR code detection.		
51	System should have capability for images snipping (snippets) so that Data entry operators can see only the relevant portion of the cheque image instead of displaying whole image, which will minimize the traffic on network and enhance the performance of the solution. However, provision to display full image of instrument is also to be available, which will be called on demand basis.		
52	System should have the feature to use Centralized Positive Pay System (CPPS) and integrated with OMNI channel (API based mobile banking, internet banking, Tab Banking etc). Bidder should also		

	extend necessary compatibility and integration support in the CTS solution for any version up gradation of the above solutions at no additional cost to bank.		
53	The Cheque Processing software must provide adequate security to the entire CTS/ system. It should be possible to disable all users (except System Administrator) at Close of day and enable/disable user through any time during the day. All changes in transactions / masters/ users must be logged and Audit trail available for all such changes clearly giving the position prior to change and after change.		
54	The System proposed shall be of browser based on 3 Tier architecture and Capable of processing all the intra-bank, interbank and inter-city instruments and transmitting the interbank instruments after consolidation to RBI / NPCI for clearing. Intra bank transactions will be segregated, consolidated and sent to respective Bank's branches/ offices/ locations of CHI/DEM Software/ output file in the specific format to enable data upload to core banking software		
55	The Software should have capability to be integrated with Active Directory/Single Sign On (AD/SSO) or other system of the Bank for User Management purpose. Solution should also support for multi factor authentication like biometric, OTP etc.		
56	The proposed software should have Maker/Checker provision for modification or configuration changes of Parameters / Rules / Setup.		

57	The software should have facility for Outward Clearing Bulk file uploading and Processing of Input Files in .XLS and .CSV formats or in any other format as required by the Bank in future		
58	The System should have web-based scanning module for Bank's Branches/ Offices with proper authentication mechanism through intranet & internet communications and segregation of Clearing Types (CTS / Non-CTS / Special Clearing.).Apart from CTS Scanner"s driver installation, there should not be any additional client based setup required to activate the scanners.		
59	The Cheques scanning is to be done in single capture with endorsement, MICR line reading along with UV image scanning.		
60	Provides provision for detection of Image Quality Assurance (IQA) success/ failure during Cheques scanning itself and provision for re-scanning of the IQA failure instruments as well. The scanning of outward clearing instruments will be carried out by Bank's Officials. Rejects due to IQA failure should be made available for rescanning. Paper to Follow (P2F) on account of IQA failures should be kept to bare minimum (near zero).		
61	The proposed CTS solution should be able to store the IQA failure reasons for IQA failed instruments. The bidder is required to submit the IQA failure data with reasons (like partial image, Excessive Image Skew, Piggy Back, Streaks and/or Bands, Bent Corner, Below Minimum Image Size, Exceeds		

	Maximum Image Size, Too Light/Dark,Image Length Mismatch, Image Height Mismatch, Below Min Image Length, Exceeds Max Image Length, Below Min Image Height, Exceeds Max Image Height, Torn corner etc.) for each Grid separately as per NPCI specified format.		
62	The Solution to have MICR reading capability with validation of MICR city-Bank-Branch data.The CTS/system shall use the particulars available on the MICR Read Band. The CTS/ system shall identify the maximum length of each of the fields that is supported. In addition, the data that is forwarded to the Clearing House shall have the nine-digit presenting bank sort code and the unique identifier/s for the images and the individual instrument. The Date of Clearing shall also be included in the file sent to the Clearing House. For Return Clearing, the date of Main Clearing as well as the Return Clearing shall be necessary.		
63	Provides for endorsement, unique item sequence number to be printed on the reverse side of the instruments and multi-line endorsement for re-presentment cases. There should not be any overlapping, in case a new endorsement is required for represented Instrument(s) in outward clearing.		
64	Provision to handle CHI/DEM Rejected instruments either Outward or Inward Returns by viewing Cheque image and capable for re-presentment by correcting MICR records, updating Ignore IQA flag or choosing proper		

	action by selecting from the drop down list etc.		
65	The Image quality of the gray scale images shall be 8 bits/pixel (256 levels). The data formats and field definitions for storing, archiving, retrieving, processing, quality of images and MICR data at the Clearing House, Clearing House Interfaces as well as exchanging between institutions shall meet at the minimum the ANSI X9.90 and ANSI DSTU X9.90 Specifications for an Image Replacement Document (IRD), ANSI X9.37 and ANSI DSTU X9.37 Specifications for Electronic Exchange of Instrument and Image Data as well as the ANSI X9.81 Specifications for Bulk Image and Data Exchange. Further, the CTS offered shall adopt the above standards for the Indian environment.		
66	Security features to be built in conformity with PKI standards, encryption techniques and digital signatures. It shall have options to implement encryptions & digital signatures at Central level, file level and instrument level. Present requirement of RBI/ NPCI states digital signatures on each and every instrument.		
67	The system shall additionally conform to the Public Key Infrastructure (PKI) Requirements as prescribed by Institute of Development and Research in Banking Technology (IDRBT) prescribed the latest version of the Certification Practice Statement (CPS).		
68	The CTS/ system shall provide for encryption both for data transfer and provide options for encryption based		

	data storage (or any other manner to ensure that data stored cannot be subject to alteration at a later point of time and legally recognized as per the laws of the country).		
69	Shall have PKI based security at domain level and user level to ensure the integrity of the data and image.		
70	Should be capable of segregating and applying multiple digital signatures at CTS Level for presenting the captured files to the Clearing House Interface (CHI/DEM) for final presentation to RBI / NPCI for different clearing types.		
71	Online validation of account numbers with Account name to be available at the time of data entry in the software. If Bank decides to have validation reports developed for checking of the data entries by checker for faster data entry to save on time, this functionality too should be made available. Support the interface through web service, DB link and APIs for integration with third party applications.		
72	Inward Returns should be properly generated from Banks/ Offices end and upload into CHI/DEM System after properly digitally signing done through Banks end.		
73	System should have all features to handle all types of clearing processing for banks i.e. processing of clearing files with proper digital signing mechanism and automatic presentation to CHI/DEM System as well.		
74	Images and data to meet the IQA/IQU and security specifications		

	from RBI/ NPCI with proper image quality and in compression mode.		
75	Passwords must be kept encrypted into the database and should not be visible anytime on the screen or kept in plain text of configuration files. No hard coding of Application user password is allowed and the same may be changed periodically as per Bank"s security policy.		
76	Ensure that the image and the data record are synchronized in a way to prevent mismatch between Data record and image record.		
77	Direct access to solution/ application, OS and Database should only be provided to the authorized users		
78	System should have facility to allocate limits to the users for each type of transaction and over-riding of the limit with higher authority user.		
79	System should provide option to disable/enable maker-checker facility with one or two checkers for validation of each transaction.		
80	Dynamic parameter based screen inquiry to allow the user to input specific parameter and get the results they need.		
81	The system should have provision for exception handling like Hold Back before dispatching the image to RBI / NPCI. Before day end, it should raise exceptions of such instruments present for the days clearing.		
82	Should be able to generate reports on frequent Cheque returns for an account.		

83	It should be able to generate Cheque return memo as per Bank's format with optional feature to include image of the instrument, if desired. Provision to generate Return memo in specific format for its client should also be available.		
84	The proposed solution should be single integrated solution for Inward Clearing / Outward Clearing / Reject processing with a single database system for all the modules instead of multiple systems.		
85	The Solution/system should be portable with latest version and Processor of the relevant Operating System.		
87	The software should support ORACLE RDBMS packages with latest version. Support multi node RAC on Oracle to achieve workload management for failover and load balancing purposes.		
88	The software should be accessible from Client PCs through all major browsers like Internet Explorer, Edge, Mozilla Firefox, Google Chrome, Safari etc.		
89	Segregation of government cheques at the time of scanning.		
90	The system should be capable of sorting the return cheques from the presented cheques. It should be correlated with the MICR Band and unique scan reference number.		
91	Option to mark batches specifically as P2F batches, CTS batches, special clearing batches, etc. should be available at the time of scanning and during verification also.		
92	As soon as data entry & QC for one cheque is completed, system should make it available for verification.		

93	System to allow amount-based segregation for verification of cheques and dual verification of cheques above certain configurable amount levels.		
94	System to support recording of any remarks for particular cheque and preserve in data base and also remark should be displayed to the verifier for appropriate action.		
95	Provision for magnifying the cheque image portion to read micro-lettering characters / QR code and also to Barcodes from the face of the cheques.		
96	System should handle future date processing so that processing and presentment can be conducted on specific presentment date		
97	System should have capability to read entire/complete MICR Band values available on Cheque and use the MICR results for further processing and presentment.		
98	Provision to capture and input Cheque Date or Instrument Date from the Cheque image and present it along with Outward Clearing.		
99	Provision for revert reject of the instruments as per user's requirement.		
100	Provision for Automatic reports generation, storing at specified location and transmission as per active rules.		
101	Solution should be capable of integrating with the Cheque Deposit Kiosk (CDM) and Remote Deposit Capture (RDC) for automatic pickup of scanned instruments/batches at regular interval. It should also maintain unique identification for these remote		

	scanning machines for proper identification and smooth processing		
102	Software should support template based scanning to capture various parts of images to accommodate the various types of Instrument during capture.		
103	Outward should read payee names by ICR/OCR and validate with the agent master uploaded in Core banking software.		
104	System should have provision for blacklisting accounts for fraud prevention or caution.		
105	The CTS Software Outward Module should contain all the technical & functional validation checks needed by Bank's workflow/ processes aided by ICR/OCR technologies. Eg. ·Account Number Capture & Validation on Instrument etc.) ·Account Flag Validations for Freeze/Closed/Minor etc. · Zero proofing for slip & instrument Etc.		
106	System should be capable for prompting, in case digital signature is missing in Inward files or Bank's Clients files.		
107	Source of image like from a branch location, Regional Processing unit or ATM or Kiosk etc. has to be captured in Audit Trail and also proper/easy retrieval mechanism should be available.		
108	Image quality should be definable and Controllable as per NPCI IQA format		

109	System should have proper validation during BOD and EOD Activities for the open files / logged in Session and provision to kill the running session without affecting Application.		
110	Provision to integrate all available CTS Cheque Scanners within the Bank by listing in single dashboard and displaying their active/ status by connecting through Intranet or Internet Connectivity provided by the Bank.		
112	Automated data capture for inward and outward clearing and signature verification as defined in Scope of Work to be complied with.		
113	All the branches of the Bank is having a bandwidth of 4 Mbps. The bidder to ensure that the outward clearing solution is optimised to function with minimum bandwidth requirement without affecting the other business critical applications.		

Help Desk Requirements:

- The Bank needs 4 L2 resources to be deployed onsite. L3 resource support shall be online/ remote through e-mail/ SMS alert from System Integrator/ OEM/ OSD depending upon the criticality of the issue on 24 X 7 X 365 basis.

- There should be a minimum of 2 L2 resources per shift with a maximum of 4 resources on a 2-shift basis (8am to 8pm) with backup arrangement for personnel fully taken care by the Bidder / SI.

- For onsite support, charges to be provided based on the manpower efforts in 2 shifts per day.

- Help desk should be well trained to effectively handle queries raised by the Bank customers/ employees, etc.

- The technical bid should cover the support structure available for the administrators and Bank users.

Data entry resources:

- The Bank needs 15 data entry resources to be deployed at Banks premises at Chennai / Delhi or other places as decided by the Bank.
- The primary responsibility of the team should be to ensure that the data captured from the inward cheques through their automated solution to be verified and do corrections if any and provide the same for Banks team for verification
- The timelines as part of continuous clearing process to be adhered to and ensured that all the cheques in a particular cycle is provided for verification without any delay and real time basis.
- The data entry resources should have the basic CTS knowledge and knowledge of cheque fields.
- Bank at its discretion shall increase or decrease the requirement of the data entry resources and the per manday cost for the resources to be provided by the bidder as part of commercial bid.
- The data entry resources shall be available on premise at all CTS working days.
- The data entry resources to be available from 9 am to 5 pm or till all the inward cheque data entry is completed whichever is later.

Training Requirements:

The Bidder will be responsible for training the Bank's employees in the areas of implementation, Integration, migration, operations, management, error handling, system administration, etc. Training will be conducted at identified location. The training should at least cover the following areas:

a. Functionality available in the solution

b. New functionality customized (if any)
c. Designing Workflow & User interface
d. Configuring Business rules
e. Integration
f. Data Migration (data mapping, field validation, default values, gaps in data migration, manual data entry programs etc.)
g. Impact Analysis
h. Generating various MIS/EIS reports from the solution provided
i. System, User and Application administration
j. Management of servers, storage, database and security
k. Log analysis and monitoring
l. Backup and Recovery Operation
m. Troubleshooting

End-user level training need to be provided primarily on the model of 'Train the Trainers' not limited to the following topics:-

a. Alert / reminder configuration
b. Use of the application
c. Easy adoption by the user
d. Troubleshooting at the user level
e. Ad-hoc report generation

Standard Operating Procedure (SOP) and training materials for system administration, end User (module wise/ scheme wise/vertical wise) and solution management will be prepared by the bidder and deliver to the Bank. Bidder will update the documents as and when required during contract period. Bank reserves the right to make copies of these materials and distribute to as many users of the bank as desired.

A brief write-up to be included about how the vendor proposes to address the training needs at multiple levels within the Bank. The bids should inter alia cover the period for which they would be made available. The bidder should ensure onsite training for all the users at the time of UAT and bidder should be flexible to give

training to the users as and when required/ demanded by the bank at any point contract period.

Information Security requirements:

- Bidder should comply with Bank's Information Security Policy, API policy, data retention policy and Bank's RTO/RPO requirement
- Bidder to ensure to follow best in class industry proven security controls during design, development, implementation, maintenance stages of the tool/solution offered, that prevent the misuse of information systems and appropriately protect the confidentiality, integrity, and availability of information systems.
- Bidder should provide SBOM (Software Bill of Materials) and CBOM (Cryptography Bill of Materials) for the entire application.
- Bidder must adhere to compliance standards such as OWASP, SANS, ISO/IEC 27000 family security standards, NIST standards, CERT-In security requirements, MeitY requirements, regulatory and statutory compliance's requirements.
- Secure use of Open Source:
  - The Implementation of open-source technologies should be taken up in compliance with Information Security (IS) policy of the Bank
  - The bidder to provide full support in implementation and maintenance for the open-source technologies in terms of upgradation, patching etc. if used as part of tool/solution
  - The bidder should provide the list of all open-source libraries being used as part of the tool/solution. None of these should consist of any malicious code/script. All such libraries/code should undergo SAST.
  - Bidder shall disclose all binary executables (i.e., compiled or byte code; source code is not required) of the solution/tool, including all libraries or components.
  - Bidder shall disclose the origin of all software and hardware components used in the tool/solution including any open source or 3rd party licensed components.
- Bidder should conduct VA at least on a half-yearly basis; PT shall be conducted at least on a yearly basis. In addition, VA/PT shall be conducted as and when any new IT component is added as part of the tool/solution or

when any major change is performed in the tool/solution. SB should entrust code audit/VA/PT through CERT-IN empanelled Auditors and they have to submit the report after attending all the observations.

- The Bidder should have a dedicated information security team.
- Bidder to provide integrity certificate stating that the tool/solution is free of known vulnerabilities, malwares, and any covert channels in the code.
- Bidder to ensure that the Product/ version/module(s) functions is developed only in a manner that it is intended to do, or is developed as per the best secure design/ coding practices and standards, addressing known flaws/threats due to insecure coding; and Penal provisions shall be included by the Bank into third-party contractual arrangements for any non-compliance by the solution/tool provider.
- Bidder should follow all the process defined by Bank like Incident, Change, Release and Patch Management
- Bank reserves the right to perform Penetration Test of the solution/tool as well as all its related integrations.
- The Bank may assign the security audit of the application to its own officers or to an agency to ensure the adequacy of protective measures applied. The solution/tool bidder must provide access to all data and programs which relate to the solution/tool to such assigned persons. Temporary log-in facilities have to be provided to the audit teams so that the team can check the security features of the system.
- Bidder to resolve security vulnerabilities/bugs/incidents as per the agreed SLAs with the Bank.
- Data at Rest and Data at Transit- Bidder shall ensure encryption and masking features wherever necessary as per Bank's requirement.
- Bidder to offer solution, that platform agnostic or platform independent.
- Bidder shall fix any security findings/vulnerabilities identified by various security agencies hired/consulted by the Bank/Regulator/CERT-In empanelled delegated by the SB or Bank, without any additional cost to the Bank.

  Further, if the security observation(s) cannot be closed by applying updates/patches/fixes/upgrades to the supplied equipment and replacement is the only option to close the observation(s), then the SB has to replace the solution(s) with solution(s) meeting all the specifications of the RFP at no extra cost to the Bank.

- The Bank will have the right to audit the bidder's people, processes, technology etc. as part of Bidder security risk assessment process and the corresponding solution should also be compliant to Indian Information Technology Act, 2000 (along-with amendments as per Information Technology (Amendment) Act, 2008) and any applicable data privacy & protection Act.
- Bidder to ensure that the solution/tool must have the capability to integrate with solutions of Security Operations Centre (SOC) such as SEIM, WAF, Fraud Risk Monitoring and other standard monitoring tools, CMS, Syslogs, etc. deployed in the Bank's environment.
- BCP – DR: Bidder should have capability to implement a corresponding DR setup for restoration of the system in the event of a disaster or major incident caused due to tool/solution. The Disaster Recovery (DR) setup should be tested prior to the go-live to verify DR readiness. Ensure the promotion of the build to production environment is done in a secure manner and the production environment is ready for the system go-live.
- SB to ensure capturing of logs/audit trails and its integrations wherever applicable and the same should be capable of being used for forensic Evidence.
- The Service Provider shall ensure compliance with Indian data privacy laws, including the Digital Personal Data Protection Act and other applicable directives such as the Data Privacy Act, Data Retention Directive, E-Privacy Directive, and E-Commerce Directive.
- Offered Solution must comply with the PCI DSS (PCI Data Security Standards). This point is applicable only if the system/software stores, processes, and/or transmits cardholder data. It covers technical and operational system components included in or connected to cardholder data. A Certificate to this effect must be provided.

- The bidder should have (Board/Top Management approved) Information Security Policy in place with periodic reviews (minimum annually) by Top Management
- No Sharing of data with any 3rd/4th party without explicit written permission from competent Information Owner of the Bank including with the Law Enforcement Agency.

- Bidder should ensure protection of all Bank's data, equipment, etc., by
    a. Treating the information as sensitive.
    b. The bidder shall keep the information confidential, use appropriate safeguards to maintain its security in accordance with industry standards.
    c. When no longer required, this information, data, and/or equipment shall be returned to Bank's control, destroyed, or held until otherwise directed by the Bank.
    d. The bidder shall ensure that unneeded items are destroyed by burning, shredding, or any other method that precludes the reconstruction of the material with consent of bank.
- The bidder should have a mechanism for completing the background verification of the officials before onboarding
- The bidder should engage CERT Empanelled Auditors for ensuring security posture of their applications. Security Testing includes but is not limited to Appsec, API Testing, Source Code Review, VA, PT,Process Review, Access Control etc.
- The bidder must not be share data with outsiders without explicit & case specific approval of IOB.
- Bidder to put in place a system of obtaining approval from the Bank before carrying out any changes in their environment.
- Bidder to ensure Detailed Network Architecture, Threat Modelling and data flow diagrams of the proposed solution are created and maintained incorporating the security components.
- Bidder to ensure use of Production Data in non-prod environments for testing purposes must be anonymized/ tokenized, sanitized along with approval from necessary stakeholders.
- Application should follow secure SDLC process
    - SDLC
    - Risk Assessment
    - Threat Modelling & Design Phase
    - Secure Static Analysis
    - Secure Testing and Code review
    - Secure Assessment and Secure Configuration

- Bidder should entrust code audit through CERTIN empanelled Auditors and they have to submit the report after attending all the observations, as and when source code modification is done.
- The bidder should ensure proper log generation, storage, management, and analysis happens for application.
- Application Security Support: The service provider must provide comprehensive support to the Application Security team for security assessments and audits. This includes, but is not limited to, providing unencrypted (plaintext) request and response payloads, headers, and other relevant metadata upon request, unpinned APK, strictly for testing and security validation purposes.
- Bidder shall have obligation to comply with all the recommendations/close all the vulnerabilities reported in the various security review, IS Audit, UAT etc conducted by the Bank, regulators, bank appointed third party at various stages during the contact period without any additional cost the Bank
- Right to audit – Bank may perform audit on the bidder's systems as when required.
- The Bank may assign the security audit of the website to its own officers or to an agency to ensure the adequacy of protective measures applied. The website bidder has to provide access to all data and programs which relate to the Bank's website to such assigned persons. Temporary log-in facilities have to be provided to the audit teams so that the team can check the security features of the system.
- The Bidder must comply with Bank's IS policy, Cyber Security Policy and IT Policy and regulatory requirements as applicable.
- The solution must enforce strict authentication mechanisms, ensuring that every financial and non-financial transaction is securely validated using multi-factor authentication, as per RBI, NPCI, and Bank's security guidelines. Unauthorized or unauthenticated requests must be rejected by default. All access and transaction activities must be logged with timestamp and user details for audit purposes.
- Ensure no back-end access is allowed for DB, If needed then same to be routed through PAM with approval from Bank.
- User access review of the agent/solution/tool to be done on monthly basis and same to be reported to bank team for review.

- The Bidder should have approved operational processes (SOP, etc) with periodic review (at least annually) of the tool/solution provided.
- The bidder must ensure end-to-end security of cheque images and CTS data through secure capture, transmission, encryption, storage, and watermarking in accordance with RBI CTS 2010 standards and all subsequent RBI/NPCI circulars. The solution must support RBI-approved image compression/hashing algorithms, enforce tamper detection through hashing and forensic markers, and ensure complete data localization within India. Strong application and network security controls must be implemented, including Zero Trust access, micro-segmentation, secure API gateway usage, certificate pinning, mTLS, strict key management using bank-approved HSMs, and automated key rotation. Comprehensive auditability must be ensured with tamperproof audit logs, WORM-compatible storage, detailed operator and system trails, and forensic retention of images and metadata.
- The bidder must disclose all subcontractors/4th parties, ensure cyber-hygiene and NDAs for all personnel, provide anti-fraud capabilities such as duplicate/alteration detection, support secure file transfers via bank-approved encrypted channels, and offer a patch compliance dashboard covering all CTS components.

6.3. Project Schedules

The Project Schedule shall be as follows:

Sr. No.	Process	Timeline
1	Finalization of FSD & hardware sizing for CTS application	Within 1 Week after PO acceptance
2	Infrastructure readiness, Hardware Deployment & Commissioning & Resource onboarding	Within 2 Weeks after PO acceptance
3	Installation & configuration of Centralized CTS application & setup and integration with DEM server or any other application for Centralized grid at DC, DR and UAT & Sanity Testing	Within 5 Weeks after PO acceptance

4	Data transformation, Migration, Customization & Implementation for Centralised CTS Grids	Within 9 Weeks after PO acceptance
5	Training of the solution	Within 9 Weeks after PO acceptance
6	User Acceptance Testing (UAT) Functional/Unit/Performance Testing & sign off	Within 12 Weeks after PO acceptance
7	Security/CISO/Audit/ESA/compliance etc. clearance & rectification/closure of Observations raised during VAPT/IS Audit/CISO Audit/ESA etc.	Within 15 Weeks after PO acceptance
8	Setup of DR for all the modules and successful DR Drill test run	Within 15 Weeks after PO acceptance
9	Go-live Preparation/Roll out of Pilot Branches (20 % branches)	Within 15 Weeks after PO acceptance
10	Final Go-live of the project	Within 16 Weeks after PO acceptance

Authorized Signatory **Name and Designation** **Office Seal**

Place:

Date:

Part 7-Bid Forms, Commercial Bid And Other Formats

Bidders are hereby advised to submit the duly signed formats (by authorised signatory whose POA is enclosed) along with the technical bid barring Format 7.15 ,7.16, 7.17 and 7.19 (which are to be submitted by the successful Bidder after award of contract). Format for commercial bid (Format 7.14) to be uploaded in the designated place holder alone. The commercial bid should not be uploaded along with the documents in the technical bid which shall lead to rejection of the bid.

Bank shall reserve the right to disqualify any bidder, if the bidder has found to have modified any verbiage in the Formats provided by the Bank in the tender document.

Format 7.1-Technical Bid

The Assistant General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Sl. No.	Particulars	Details
a)	Name of the Bidder Firm/Company	
b)	Constitution (Ltd./ Pvt. Ltd/Firm etc.)	
c)	Date of Incorporation and / or Commencement of business with supporting documents	
d)	Certificate of Incorporation (CIN)	
e)	Whether registered as MSE for the item under the GeM Bid? (Proof of registration as MSE for the item under the GeM Bid)	
f)	Whether recognized as a Startup by Department of Industrial Policy and Promotion (DIPP)?	

	(Proof of such recognition, indicating terminal validity date of registration)		
g)	Address of Corporate Office		
h)	Address of the Registered Office		
i)	Particulars of the Primary Contact Person (Authorized Signatory of the Bidder)	Name	
		Designation	
		Address for Correspondence	
		Phone Number (Landline)	
		Mobile Number	
		Email address	
j)	Particulars of the Secondary Contact Person	Name	
		Designation	
		Mobile Number	
		Email address	
k)	Firm / Company Website address		
l)	Firm/Company PAN number: Firm/Company GST Number: Firm/Company TAN Number: <u>Beneficiary Bank Details for Bid security refund etc.,</u> Beneficiary Name Beneficiary Account Number Type of Bank Account (Current/OD/OCC etc.) IFSC Code Beneficiary Bank Name & Branch address		

- With reference to the above tender, having examined and understood the instructions, terms and conditions forming part of the tender, we hereby

enclose our offer for providing said solution as detailed in your above referred tender.

- We confirm that the offer is in conformity with the terms and conditions as mentioned in the above-cited tender and agree to all the terms and conditions of the tender and subsequent amendments made, if any.

- We confirm that we agree to all the terms and conditions mentioned in this tender document.

Authorized Signatory **Name and Designation** **Office Seal**
Place:
Date:

Format 7.2-Eligibility Criteria

The Assistant General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Dear Sir,

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

We hereby declare that all the documents required for bidder qualification criteria are included with this annexure.

Sl. No.	Clause	Compliance (Yes/No)	Documents required
Eligibility Clause 1:			

Note: Bidder to duly fill all the eligibility clauses as mentioned in the clause 3.5 and compliance and document details to be indicated in the above table.

Authorised Signatory:
Name and Designation:
Office Seal with date

Format 7.3-Self Declaration – Blacklisting

The Assistant General Manager
Information Technology Department
Indian Overseas Bank
Central Office
763 Anna Salai
Chennai- 600 002

Dear Sir,

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

We certify that, we have not been blacklisted / debarred / by Public Sector/ Central Government / State Government(s) / PSUs / RBI / IBA / NPCI or any other Regulatory Authority as on date of submission of bid.

In the event of Bank coming across any information about blacklisting/debarment of the bidder by any such companies referred in the clause, Bank shall reserve the right to summarily reject the bid in any stage/s post seeking an explanation from the company and providing sufficient cooling time for its response.

In such cases, the bank's decision will be final and binding on the bidder.

Authorized Signatory **Name and Designation** **Office Seal**

Place:
Date:

Format 7.4-Undertaking of Information Security

(This letter should be on the letterhead of the bidder duly signed by an authorized signatory on Information security as per regulatory requirement)

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Sir,

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

We hereby undertake that the proposed hardware / software to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done).

Name of OEM	Name of Solution offered	Version details of solution offered

Yours faithfully,

Authorized Signatory
Name:
Designation:
Vendor's Corporate Name
Address
Email and Phone #

Format 7.5-Undertaking for Labour Law

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Sir,

Tender. No. : _____

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

We, M/s _____undertake that we comply with all the applicable clauses of Labour Laws issued by Govt of India for the entire duration of the contract. The required related documents will be submitted, if required during the contract period.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name

Address

Email and Phone #

Format 7.6-Reference Details

(This letter should be on the letterhead of the bidder duly signed by an authorized signatory)

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Sir,

Client reference details			
	Reference no.1	Reference no.2	Reference no.3
Name of the client			
Type of the client (Bank/BFSI/Govt organization/Pvt Organization)			
Details of contact official from client for reference Name: Designation: Contact number: Email ID:			
Project Description			
Tender reference (if applicable)			
Purchase order reference			
Contract start date			
Contract End date			
Project Go-live date			
Services rendered as part of contract			

Authorized Signatory **Name and Designation** **Office Seal**
Place:
Date:

Format 7.7- Infrastructure requirement for the Solution

a. Instance or Server details:

Bidder must submit the required details for each layer in solution/platform covering all layers but not limited to WEB, APP, DB in the following format:

Application name	Application instance / Module name	Env	Application tier	Physical Server / Virtual instance	H/w Platform (x86 or other please specify)	Cluster Type (Active-Active/ Active Passive)	No. of Physical cores	No. of Virtual Cores	Memory in (GB)	Operating system with version	Database with version	Database type (Server based / User based / Core	Runtime Components (Example - .NET Framework, Oracle's JRE/Java, OpenJDK etc)	Third party's libraries/software/API/SDK	MiddleWare Components (Example-JBOSS EAP,TOMCAT, WEBLOGIC,WEBSPHERE etc)	Usable Storage capacity (GB)	IOps prefered	Load balancer type (Application based / Appliance

b. Link Requirement:

Note:

1. Considering the integration that may be required with on-premises deployment (existing applications)

2. **Bidder to enclose the benchmarking report of their application done by any reputed agencies to substantiate their infrastructure requirements**.

3. X86 based Virtual machines only shall be provisioned by the bank.

c. Any Other

Any other information that could not be captured in "Infra details" or "Bandwidth requirement" to be included in this table

SL.No.	Description	Purpose	Qty

Authorized Signatory **Name and Designation** **Office Seal**

Place:

Date

Format 7.8-Escalation Matrix of All Verticals

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Dear Sir,

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

The escalation matrix up to top level of company is tabulated below in hierarchy-

Sr. N	Particulars	Level-1 Escalation	Level-2 Escalation	Level-3 Escalation
1		Name: Phone No: Cell No: Email :	Name: Phone No: Cell No: Email :	Name: Phone No: Cell No: Email :

Authorized Signatory **Name and Designation** **Office Seal**
Place:
Date:

Note- Kindly mention escalation matrix of all verticals (support, sales and delivery of the company. There should be a single point of contact of senior level for verticals.

Format 7.9-Undertaking as per Outsourcing norms

The Deputy General Manager
Information Technology Department
Indian Overseas Bank
Central Office
763 Anna Salai
Chennai- 600 002

Dear Sir,

Tender Reference:

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

We hereby confirm that our firm M/s _____is not owned or controlled by any director, or key managerial personnel, or approver of Indian Overseas Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time.

Dated at Chennai this _____ day of _____2026.

Yours faithfully,

Authorized Signatory **Name and Designation** **Office Seal**
Place:
Date:
Enclosed: Power of attorney/Letter of authorization

Format 7.10-Letter of Undertaking

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Dear Sir,

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

1. We hereby confirm that we agree and unconditionally accept all the GeM tender terms and conditions of the GeM tender no: _____ , its Annexes, amendments made to the tender without any pre-conditions. Any presumptions, assumptions, deviations given or attached as part of technical document (technical bid) be treated as null and void.
2. On selection as successful bidder, we undertake that our company shall deliver the services and shall supply software components as mentioned in the Part 6 of the tender.
3. We confirm that at any point utilization of hardware infrastructure shall be within the 70% threshold limit. We agree to all the terms and conditions mentioned in this tender document.
4. We confirm that the undersigned is authorized to sign on behalf of the company and the necessary support document delegating this authority is enclosed to this letter.
5. We also undertake to submit the service level agreement and contract agreement (Format 7.19) as per the format provided by the bank.
6. We also undertake to submit the non-disclosure agreements (Format 7.16) as per the format provided in the tender.
7. We also declare that our company not under any Bankruptcy or Liquidation process and complies to the law of land. We also understand that; our bid shall be liable for rejection if our declaration if found incorrect.

8. We hereby undertake that the resources to be on boarded as part of this tender shall be on our payroll.
9. We also undertake to submit background verification report for all resources onboarded as part of this tender and vendor due diligence report from the bank as and when required.

Dated at_____ this _____ day of _____2026.

Authorized Signatory **Name and Designation** **Office Seal**

Place:

Date:

Enclosed: Power of attorney of authorized signatory

Format 7.11-Bank Guarantee Format for Earnest Money Deposit

To ……
……..

WHEREAS _____(Name of Tenderer) (hereinafter called "the Tenderer" has submitted its tender dated _____ (Date) for the execution of (Name of Contract)_____ _____(hereinafter called "the Tender") in favour of _____hereinafter called the "Employer"; KNOW ALL MEN by these presents that we, _____(name of the issuing Bank), a body corporate constituted under the _____having its Head Office at _____amongst others a branch/office at _____ (hereinafter called "the Bank"(*) are bound unto the employer for the sum of Rs_____(Rupees_____only) for which payment well and truly to be made to the said Employer, the Bank binds itself, its successors and assigns by these presents; THE CONDITIONS of this obligation are:

(a) If the Tenderer withdraws its Tender during the period of Tender validity specified in the Tender; or

(b) If the Tenderer having been notified of the acceptance of his Tender by the Employer during the period of Tender validity;

(i) fails or refuses to execute the Agreement, if required; or

(ii) fails or refuses to furnish the performance security, in accordance with clause _____ of conditions of Contract.

We undertake to pay to the Employer up to the above amount upon receipt of his first written demand without the Employer having to substantiate his demand, provided that in his demand the Employer will note that the amount claimed by him is due to him owing to the occurrence of one or both of the above mentioned two conditions, specifying the occurred condition or conditions.

Notwithstanding anything to the contrary contained herein:

i) Our liability under this Bank guarantee shall not exceed Rs_____ (Rupees _____ only) and

ii) This Bank guarantee shall be valid up to and till…….only, being the date of expiry of the Guarantee and

iii) We are liable to pay up to the Guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before…… being the date of expiry of the claim period, falling which all your rights shall be extinguished and Bank shall be discharged from all liabilities thereunder, irrespective of return/non-return of original Bank Guarantee.

For all purposes connected with this Guarantee and in respect of all disputes and differences under or in respect of these presents or arising there from the courts of Chennai city where the Bank has its Central Office shall alone have jurisdiction to the exclusion of all other courts.

IN WITNESS WHEREOF the Guarantor has caused these presents to be executed on the day, month and year first herein above written as hereinafter appearing.

SIGNED AND DELIVERED BY
the within named Guarantor,
_____,
by the hand of Shri_____,
its authorised official.

(*) To be suitably altered depending on the nature of constitution of the bank that issues the guarantee.

(**) There shall be a claim period of 2(two) months from the date of expiry of the guarantee.

Format 7.12-Pre-Contract Integrity Pact

TENDER NAME: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

TENDER REF NO:

PREAMBLE

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on this the day of (month) 2026, between, on one hand, Indian Overseas Bank acting through Shri. Anil Sam George V, Chief Manager of Indian Overseas Bank, a nationalized Bank and an undertaking of the Government of India constituted under the Banking Companies (Acquisition and Transfer of Undertakings) Act, -1970 hereinafter called the "BUYER", which expression shall mean and include, unless the context otherwise requires, his successors and permitted assigns) of the First Part and M/s _____, a Company incorporated under the Companies Act, or a Partnership Firm registered under the Indian Partnership Act, 1932 or the Limited Liability Partnership Act, 2008 represented by Shri. _____, Chief Executive Officer/ all the Partners including the Managing Partner (hereinafter called the" BIDDER/Seller" which expression shall mean and include, unless the context otherwise requires, his successors and permitted assigns) of the Second Part.

WHEREAS the BUYER proposes to procure **GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model** (Name of the Stores/Equipment / Services) and the BIDDER/Seller is desirous of offering / has offered the stores/Equipment / Services and

WHEREAS the BIDDER is a private company/public company (strike off the items which are note applicable) and is the original manufacturer / integrator / authorized / Government sponsored export entity of the stores / equipment / item or Service Provider in respect of services constituted in accordance with the relevant law in the matter end the buyer is a Nationalized Bank and a Government Undertaking as such.

WHEREAS the BUYER has floated a tender (Tender No.:_____) hereinafter referred to as "Tender / RFP" and intends to award, under laid down organizational procedures, contract/s purchase order / work order for (Name of the

Stores/Equipment / Services) **GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model** or items covered under the tender hereinafter referred to as the "Contract".

AND WHEREAS the BUYER values full compliance with all relevant laws of the land, rules, byelaws, regulations, economic use of resources and of fairness/transparency in its relation with its Bidder(s) and Contractor(s).

AND WHEREAS, in order to achieve these goals, the BUYER has appointed Independent External Monitor (IEM), to monitor the tender process and the -execution of the Contract for compliance with the Principles as laid down in this Agreement.

AND WHEREAS to meet the purpose aforesaid both the parties have agreed to enter into this Integrity Pact or "Pact", the terms and conditions of which shall also be read as Integral part and parcel of the Tender documents and Contract between the parties.

AND WHEREAS Bidder and BUYER understands that the signing of this Integrity Pact is a preliminary qualification to participate in the aforementioned bidding process.

NOW, THEREFORE in, consideration of mutual covenants contained in this Pact, to avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings, the parties hereby agree as follows and this Pact witnesseth as under:

The contract is to be entered into with a view to: -

Enabling the BUYER to procure the desired said stores/equipment/item/Services at a competitive price in conformity with the defined specifications by avoiding the high cost and the distortionary impact of corruption on public procurement and

Enabling BIDDERs to abstain from bribing or indulging in any corrupt practice in order to secure the contract by providing assurance to them that their competitors will also abstain from bribing and other corrupt practices and the BUYER will commit to prevent corruption, in any and all forms, by its officials by following transparent procedures.

The parties hereby agree hereto to enter into this Integrity Pact and agree as follows:

Article 1: Commitments Of The Buyer

1.1 The BUYER undertakes that no employee of the buyer, personally or through family members, will in connection with the tender for, or the execution of a contract, demand; take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.

1.2 The BUYER will, during the pre-contract stage, treat all BIDDERs alike, and will provide to all BIDDERs the same- information and will not provide any such information to any particular BIDDER which could afford an undue and unfair advantage to that particular BIDDER in comparison to other BIDDERs. The BUYER will ensure to provide level playing field to all BIDDERS alike.

1.3 All the officials of the BUYER will report to the appropriate Government office any attempted breach(es) or breaches per se of the above commitments as well as any substantial suspicion of such a breach. The bidder(s)/Contractors will not instigate third persons to commit offences outlined above or be an accessory to such offences.

1.4 In case any such preceding misconduct on the part of such official(s) is reported by the BIDDER to the BUYER with full and verifiable facts and the same is prima facie found to be correct by the BUYER, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the BUYER and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the BUYER, the proceedings under the contract would not be stalled.

1.5 The BUYER will exclude from the process all known prejudiced persons.

Article 2: Commitments Of Bidders

The BIDDER commits itself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of its bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commit itself to the following principles during participation in tender process and doing contract execution: -

2.1 The BIDDER will not, directly or through any other person or firm, offer, promise or give to any of the buyer's employees involved in the tender process or the

execution of the contract or to any third person any material or other benefit which he/ she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.

2.2 The BIDDER will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelisation in the bidding process.

2.3 The BIDDER further undertakes that it has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement of any kind to any official of the BUYER or otherwise in procuring the Contract or forbearing 'to do or having done any act in relation to the obtaining or execution of the contract or any other contract with the Bank for showing or forbearing to show favour or disfavour to any person in relation to the contract or any other contract with the Bank.

2.4 The BIDDER of foreign origin shall disclose the name and address of the Agents/representatives in India, if any, Similarly the Bidder(s)/Contractors(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers" shall be disclosed by the Bidders(s)/Contractors(s). Further, as mentioned in the Guidelines all the payments made to Indian Agent/representative have to be in Indian rupees only.

2.5 The BIDDER who have signed the Integrity Pact shall not approach the Courts while representing the matter to IEMs and shall wait for their decision in the matter.

2.6 The bidder(s)/Contractor(s) will when presenting their bid, disclose any and all payments made, is committed to or intends to make an agent, brokers or any other intermediaries in connection with the award of the contract.

2.7 The BIDDER further confirms and declares to the BUYER that the BIDDER is the original manufacturer / integrator / authorized / government sponsored

export entity of the stores/equipment/item/Services and has not engaged any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the BUYER or any of its functionaries, whether officially or unofficially to award the contract to the BIDDER, nor has any amount been paid, promised or intended to be paid to any such individual, firm or company in respect of any such intercession, facilitation or recommendation.

2.8 The BIDDER, either while presenting the bid or during pre-contract negotiations or before signing the contract, shall disclose any payments he has made, is committed to or intends to make to officials of the BUYER or their family members, agents, brokers, or any other intermediaries in connection with the contract and the details of services agreed upon for such payments.

2.9 The BIDDER will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.

2.10 The BIDDER shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information provided by the BUYER as part of the business relationship, regarding plans, technical proposals and business details, including information contained in any electronic data carrier. The BIDDER also undertakes to exercise due and adequate care to avoid unauthorized disclosure of such information.

2.11 The BIDDER commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.

2.12 The BIDDER undertakes not to instigate directly or indirectly any third person to commit any of the actions mentioned above.

2.13 If the BIDDER or any employee of the BIDDER or any person acting on behalf of the-BIDDER, either directly or indirectly, is a relative of any of the officers of the BUYER, or alternatively, if any relative of an officer of the BUYER has financial interest/stake in the BIDDER's firm, the same shall be disclosed by the BIDDER at the time of filing of tender.

The term 'relative 'for this purpose would be as defined in Section 6 of the Companies Act 1956 and as may be prescribed under the Companies Act 2013 and the relevant Rules

2.14 The BIDDER shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the BUYER.

2.15 The Bidder shall not pass any information provided by the buyer as part of business relationship to others and shall not commit any offence under PC/IPC.

2.16 The BIDDER undertakes that it has not supplied/ is not supplying same quantity with similar specification product/ systems or subsystems at a price lower than that offered in the present bid in respect of any other Tender notified by Ministry/Department of the Government of India or PSU or a Public Sector Bank and if it is found at any stage that same quantity with similar specification product/systems or sub systems was supplied by the BIDDER to any other Ministry/Department of Government of India or a PSU or a Public Sector Bank at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in cost would be refunded by the BIDDER to the BUYER, if the contract has already been concluded.

With regard to OEMs or manufacturers having proprietary rights against a PAC certificate, such bidders undertake that in case it supplies or quotes a lower rate to other government, public sector, or private organizations, it would reimburse the excess. If necessary, negotiations would be called for to get prices reduced.

The provisions of fall clause will however not apply to the following:

(i) Sale of goods or services as original equipment prices lower than the price charged for normal replacement.

(ii) Sale of goods or services at lower price on or after the date of completion of sale/placement of order of goods or services by the authority concerned, under the existing or previous Rate Contracts as also under any previous contracts entered into with the Central or State

Government Departments including new undertakings (excluding joint sector companies and or private parties) and bodies.

Article 3 - Equal Treatment Of All Bidders/Contractors/Subcontractors

Bidder(s) /Contractor(s) undertake(s) to demand from all subcontractors a commitment in conformity with this Integrity Pact. The Bidder/Contractor shall be responsible for any violation(s) of the Principles laid down in this agreement/Pact by any of its Sub-contractors/sub-vendors.

3.1 The BUYER will enter into Pacts on identical terms as this one with all Bidders and Contractors who shall take responsibility of the adoption of the integrity pact by the sub-contractors.

3.2 The BUYER will disqualify those Bidders from the Tender process, who do not submit, the duly signed Pact, between the BUYER and the bidder, along with the Tender or violate its provisions at any stage of the Tender process.

3.3 In case of joint venture, all the partners are required to sign the integrity pact.

Article 4: Previous Transgression

4.1 The Bidders to disclose any transgressions with any other public/ government organization that may impinge on the anti-corruption principle. The date of such transgression, for the purpose of disclosure by the bidders in this regard, would be the date on which cognizance of the said transgression was taken by the competent authority. The period for which such transgression(s) is/are to be reported by the bidders shall be the last three years to be reckoned from date of bid submission. The transgression(s), for which cognizance was taken even before the said period of three years, but are pending conclusion, shall also be reported by the bidders.

4.2 The BIDDER agrees that if it makes incorrect statement on this subject, BIDDER is liable to be disqualified from the tender process or the contract, if already awarded, is liable to be terminated for such reason. If the bidder makes incorrect statement on the subject, he can be disqualified from the tender

process or action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealings".

4.3 The imposition of the exclusion of the BIDDER will be determined by the BUYER based on the severity of transgression. Buyer shall reserve the right to debar the- BIDDER from participating in future bidding processes of- the Bank for a minimum period of five years, which may be further extended at the discretion of the BUYER.

4.4 The Bidder/Contractor acknowledges and undertakes to respect and uphold the BUYER's absolute right to resort to and impose such exclusion.

4.5 Apart from the above, the BUYER may take action for banning of business dealings/holiday listing of the Bidder/Contractor as deemed fit by the BUYER.

4.6 If the Bidder/Contractor can prove that he has resorted/recouped the damage caused by him and has implemented a suitable corruption prevention system, the BUYER may, at its own discretion, as per laid down organizational procedures, revoke the exclusion prematurely.

Article 5: Criminal Liability

If the BUYER obtains knowledge of conduct of a Bidder, Contractor or Subcontractor, or of an employee or a representative or an associate of a Bidder, Contractor or Subcontractor which constitutes corruption, or if the buyer has substantive suspicion in this regard, the BUYER will inform the same to the Chief Vigilance Officer of the Bank.

Article 6: Compensation For Damages

6.1 If the BUYER has disqualified the BIDDER from the tender process prior to the award on account of Violation of Article 2, the BUYER is entitled to demand and recover the damages equivalent to Earnest Money Deposit/ Bid Security.

6.2 If the BUYER has terminated the contract on account of Violation of Article 2, or if the buyer is entitled to terminate the contract on account of Violation of Article 2, the BUYER shall be entitled to demand and recover from the BIDDER liquidated damages of the Contract value or the amount equivalent to Performance Bank Guarantee.

Article 7: Sanction For Violations

7.1 Any breach of the aforesaid provisions by the BIDDER or anyone employed by it or acting on its behalf [whether with or without the knowledge of the BIDDER] shall entitle the BUYER to take all or anyone of the following actions, wherever required;-

(i) To immediately call off the pre-contract negotiations/ proceedings with such Bidder without assigning any reason or giving any compensation to the BIDDER. However, the proceedings with the other BIDDER[s] would continue.

(ii) The Earnest Money Deposit [in pre-contract stage] and/or Security Deposit/Performance Bond [after the contract is signed] shall stand forfeited either fully or partially, as decided by the BUYER and the BUYER shall not be required to assign any reason there for.

(iii) To immediately cancel the contract, if already signed, without giving any compensation to the BIDDER.

(iv) To encash the advance bank guarantee and performance guarantee/ bond/ warranty bond, if furnished by the BIDDER, in order to recover the payments, already made by the BUYER along with interest.

(v) To cancel all or any other Contracts with the- BIDDER, the BIDDER shall be liable to pay compensation for any loss or damage to the BUYER resulting from such cancellation/rescission and the BUYER shall be entitled to deduct the amount so payable from the money[s] due to the BIDDER.

(vi) To disqualify the bidders and exclude them from future business dealings as per the existing provision of GFR, 2017, PC Act, 1988 and other Financial Rules/Guidelines as applicable.

(vii) To recover all sums paid in violation of this Pact by BIDDER[s] to any middleman or agent or broker with a view to-securing the contract.

(viii) In cases where irrevocable Letters of Credit have been received in respect of any-contract signed by the BUYER with the BIDDER, the same shall not be opened.

(ix) Action as per the procedure mentioned in the "Guidelines on Banning of business dealing" may be taken.

7.2 The BUYER will be entitled to take all or any of the actions mentioned at paragraph 7.1[i] to [ix] of this Pact also on the Commission by the BIDDER or any one employed by it or acting on its behalf [whether with or without knowledge of the BIDDER], of an offence as defined in Chapter IX of Indian Penal Code, 1860 or Prevention of

Corruption Act, 1988, GFR 2017 as amended from time to time or any other statute implemented for prevention of corruption or any other financial regulations.

7.3 The decision of the BUYER to the effect that a breach of the Provisions of this Pact has been committed by the BIDDER shall be final and conclusive on the BIDDER. However, the BIDDER can approach the Independent Monitor[s] appointed for the purposes of this Pact.

Article 8: Independent External Monitor

8.1 The BUYER has appointed Independent" External Monitor [hereinafter referred to as Monitor] for this Pact in consultation with the Central Vigilance Commission. They are,

Shri Prashanta Kumar Agrawal, IPS (Retd.) H. N. 762, Sector 17, Faridabad, Haryana-121002 Mobile: 8054932121 Email: agrawal.prashanta@gmail.com

8.2 The task of the Monitor shall be to review independently and objectively, whether and to what extent the parties comply with the obligation under this Pact.

8.3 The Monitor shall not be subject to instructions by the representatives of the parties and perform their functions neutrally and independently.

8.4 Both the parties accept that the Monitor have the right to access all the document relating to the project/procurement, including minutes of meetings. The same is applicable to Subcontractors of the Bidder. The Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/Contractor(s) /Subcontractor(s) with confidentiality.

8.5 As soon as the Monitor notices, or has reason to believe, a violation of this Pact, he will so inform the Authority designated by the BUYER and request the Management to discontinue or take corrective action, or to take other relevant action. The Monitor can in this regard submit recommendations.

8.6 The BIDDER accepts that the Monitor has the right to access without restriction to all Project documentation of the BUYER including that provided by the BIDDER. The BIDDER will also grant the Monitor, upon his request and demonstration of a valid

interest, unrestricted and unconditional access to his, project documentation. The same is applicable to Subcontractors also which the BIDDER shall note.

8.7 The BUYER will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the parties. The parties will offer to the Monitor the option to participate in such meetings.

8.8 The Monitor on report of complaints shall examine the complaints received and shall give their recommendations/view to the Chief Executive of the BUYER at the earliest. IEM may also send their report directly to the CVO in case of suspicion of serious irregularities requiring legal/administrative action. Only in case of very serious irregularities having a specific, verifiable vigilance angle, the matter shall be reported directly to the Vigilance Commission. IEMs shall tender their advice on complaint within 30 days.

8.9 The word **'Monitor'** would include both singular and plural.

8.10 The Monitor Shall have access to all the documents/records pertaining to the contract for which a complaint or issue is raised before them, as and when warranted. However, the documents /records/information having National security implications and those document which have been classified as Secret/Top Secret are not to be disclosed.

8.11 The Monitor may also look into any issues specifically raised before them, relating to execution of contract after award of contract.

8.12 If the Monitor has reported to The designated Authority of BUYER, a substantiated suspicion of an offence under Indian Penal Code/Prevention of Corruption Act as the case may be, and the designated Authority of BUYER has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.

Article 9: Dispute resolution:

9.1 In the event of any dispute between the and the contractor relating to those contracts where Integrity Pact is applicable, in case both the parties are agreeable,

they may try to settle dispute through mediation before the panel of IEMS in a time bound manner. In case the dispute remains unresolved even after mediation by the panel of Monitors, the BUYER shall have the right to take further action as per the terms and conditions of the contract. The fees/expenses for dispute resolution shall be equally shared by both parties.

9.2 The Monitor will submit a written report to the designated Authority of BUYER within 4 weeks from the date of reference or intimation to him by the BUYER/BIDDER and, should the occasion arise, submit proposals for correcting problematic situations.

Article 10: Law And Place Of Jurisdiction

This Pact is subject to Indian Laws. The place of performance and jurisdiction is as notified by the BUYER.

Article 11: Other Legal Actions

The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant laws in force relating to any civil or criminal proceedings.

Article 12: Validity

12.1 The validity of this Integrity Pact shall be from date of its signing and extend up to 5 years or the complete execution of the contract to the satisfaction of both the BUYER and the BIDDER/Seller, including warranty period, whichever is later. In case BIDDER is unsuccessful, this Integrity Pact shall expire after six months from the date of the signing of the contract.

12.2 Should one or several provisions of this Pact turn out to be invalid, the remainder of this Pact shall remain valid. In such case, the parties will strive to come to an agreement to their original intentions.

Article 13: Code Of Conduct

Bidders are also advised to- have a Code of Conduct clearly rejecting the use of bribes and other unethical behavior and a compliance program for the implementation of the code of conduct throughout the company.

Article 14: Legal And Prior Rights

All rights and remedies of the parties hereto shall be in addition to all the other legal rights and remedies belonging to such parties under the Contract and/or law and the same shall be deemed to be cumulative and no alternative to such legal rights and remedies aforesaid. For the sake of brevity, both the Parties agree that this Pact will have precedence over the Tender/Contract documents with regard to any of the provisions covered under this Pact.

Article 15: Other Provisions

This Pact is subject to Indian laws. The place of performance and jurisdiction is the Head Office/Head Quarters of the Division of the BUYER or as otherwise notified by the BUYER, who has floated the Tender.

15.1 Changes and supplements, if any, need to be necessarily made in writing and signed by the duly authorized representatives of the Bidder and the Buyer. It is clarified that there are no parallel/ Side agreements in this regard and that the present Agreement forms the full and complete agreement as regards the subject matter contained herein.

15.2 If the BIDDER is a partnership or a consortium, this Pact must be signed by all the partners and consortium members. In case of a Company, the Pact must be signed by a representative duly authorized by Board resolution. In case of joint venture, all the partners are required to sign the integrity pact.

15.3 Should one or several provisions of this Pact turn out to be invalid, the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

15.4 Any dispute or difference arising between the parties with regard to the terms of this Agreement/Pact", any action taken by the BUYER in accordance with this Agreement/Pact or interpretation thereof shall be first referred to IEM, who, then after examination, referred to CVC through Vigilance Dept.

15.5 Issues like warranty/Guarantee etc. shall be outside the purview of IEM.

15.6 In the event of any contradiction between the Integrity Pact and its annexures, the clause in the Integrity Pact will prevail.

The parties hereby sign this Integrity pact at **Chennai** on ……

BUYER	BIDDER
Name of the Officer	CHIEF EXECUTIVE OFFICER
Designation	
Indian Overseas Bank	
Witness	Witness
1.	1.
2.	2.

Format 7.13-Land Border Sharing Certificate

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Dear Sir,

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

Bidder Name:

""I have read the provisions of the order ref: 6/18/2019-PPD Dated 23.07.2020 from Department of Expenditure, Ministry of Finance and the specific clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfils all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Authorized Signatory **Name and Designation** **Office Seal**
Place:
Date:

Format 7.14-Format for Commercial Bid

(NOT TO BE UPLOADED ALONG WITH TECHNICAL BID. TO BE UPLOADED IN THE SPECIFIC PLACE HOLDER PROVIDED FOR UPLOADING COMMERICAL BREAKUP)

1. Name of Bidder :
2. Address of Corporate Office :

(Amount in ₹)

TABLE I – COST OF SOLUTION:

S. No	Description	Total cost (Incl. of tax)
1.	Cost of CTS solution with Enterprise-wide license for Centralized National Grid web-based CTS Solution	
2.	One time implementation cost	
3.	**Total cost of solution**	

TABLE II – COST OF ATS SUPPORT (2nd year to 5th year) :

S. No	Description	Total cost (Rs)
1.	ATS Support Charges for 2nd year for CTS solution	
2.	ATS Support Charges for 3rd year for CTS solution	
3.	ATS Support Charges for 4th year for CTS solution	
4.	ATS Support Charges for 5th year for CTS solution	
5.	**Total ATS SUPPORT Cost (1+2+3+4)**	

TABLE III – COST OF ONSITE SUPPORT :

S. No	Resource type	Qty N	Unit price for 1st year	Unit price for 2nd year	Unit price for 3rd year	Unit price for 4th year	Unit price for 5th year	Total cost (Incl. of tax)

			(Incl. of tax) A	(Incl. of tax) B	(Incl. of tax) C	(Incl. of tax) D	(Incl. of tax) E	(A+B+C+D+E)*N
1.	L2 Resource	4						
2.	Data Entry team	15						
3.	**Total resource cost**							

TABLE IV – COST OF ESCROW:

S. No	Description	Total cost (Rs)
1.	Cost of Escrow	
2.	Renewal charges for Escrow for 2nd year	
3.	Renewal charges for Escrow for 3rd year	
4.	Renewal charges for Escrow for 4th year	
5.	Renewal charges for Escrow for 5th year	
6.	**Total ESCROW Cost (1+2+3+4+5)**	

TABLE V- TOTAL COST :

S. No	Description	Table	Total cost (Rs.)(Incl. of tax)
1.	Total cost of solution	TABLE I	
2.	Total ATS SUPPORT Cost	TABLE II	
3.	Total Cost of onsite support	TABLE III	
4.	Total Escrow cost	TABLE IV	
5.	**Grand Total**		

1. This shall be inclusive of all the components and services mentioned in the tender document as per details mentioned in Part 6.

2. During the tenure of contract, Bank reserve the right to drop any line items in the commercial bid and may advise the bidder not to deliver such line items.
3. Prices quoted shall be inclusive of all taxes, duties and GST.
4. Bidder has to show the bifurcation/details of applicable GST (CGST/SGST/IGST) in every invoice. Any upward revision in GST will be borne by Bank.
5. The price quoted should be valid for the duration of the contract.
6. Bank can increase/decrease the number of onsite resources as per requirement and cost for the same shall be paid on pro-rata basis based on the price quoted in Table II.
7. The prices quoted should also include charges towards freight, forwarding, delivery, installation, insurance charges, transportation, configuration/reconfiguration, and integration. Bank will not pay any additional charges other than those mentioned above for deriving TCO.

L1 bidder will be determined based on the total cost of ownership (TCO) quoted by any of the technically shortlisted bidders under Table V SL.No: 5 (Grand Total).

We certify that the items quoted above meet all the technical specifications, Functional requirements, technical requirements as per Annexures of this tender and prices quoted are all in compliance with the terms of this tender. We also confirm that we agree to all the terms and conditions mentioned in this tender document.

Authorized Signatory **Name and Designation** **Office Seal**
Place:
Date:

Format 7.15-Proforma of Bank Guarantee (Performance)

THIS GUARANTEE AGREEMENT executed at _____ this ____ day of _____Two Thousand Twenty-Six.

BY:

_____ Bank, **(*) a body corporate constituted under Banking Companies Acquisition and Transfer of Undertakings) Act, 1970,** having its Registered Office/ Head Office at _____, and a Branch Office at _____ (hereinafter referred to as "**the Guarantor**", which expression shall, unless it be repugnant to the subject, meaning or context thereof, be deemed to mean and include its successors and assigns)

IN FAVOUR OF:

Indian Overseas Bank, a body corporate constituted under Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970, having its Central Office at 763, Anna Salai, Chennai 600 002 (hereinafter referred to as "**Bank**", which expression shall unless it be repugnant to the subject, meaning or context thereof, be deemed to mean and include its successors and assigns),

1. WHEREAS the Bank, on _____ has concluded a contract as per Purchase Order no……..with _____ a company within the meaning of the Companies Act, 1956 (1 of 1956) and having its registered office at _____ for ……..(provide contract details) and to carry out activities as stipulated in clause ..... of the tender reference no……dated…… & its subsequent amendments (hereinafter collectively called "scope of work").

2. AND WHEREAS pursuant to the Bid Documents, purchase order and the other related documents (hereinafter collectively referred to as "the said documents"), the Bank has agreed to purchase from M/s…… who has agreed to provide to the Bank the said services/solution ....., more particularly described in the said documents, subject to payment of the price as stated in

the said documents and also subject to the terms, conditions, covenants, provisions and stipulations contained in the said documents.

3. **AND WHEREAS** pursuant to the above arrangement, the Bank, has concluded a Contract with M/s. ..... on ..... (Hereinafter referred to as "the **Vendor"** which expression shall unless it be repugnant to the subject, meaning or context thereof, be deemed to mean and include its successors and assigns), subject to the terms and conditions contained in the said documents and the vendor has duly confirmed the same.

4. **AND WHEREAS** in terms of the Contract stated in the said documents, the **vendor** has agreed to warrant comprehensive maintenance of the entire ..... including the System, components and accessories supplied and to provide an unconditional and irrevocable performance bank guarantee, in favour of the Bank, from a Scheduled Commercial Bank other than Indian Overseas Bank acceptable to the Bank for securing the Bank towards faithful observance and performance by the vendor of the terms, conditions, covenants, stipulations, provisions of the Contract/the said documents.

5. **AND WHEREAS** at the request of the Vendor, the Guarantor has agreed to guarantee the Bank, payment of Rs. _____ (Rupees _____ Only)("**Guarantee Amount**") being .....% of the net order value towards faithful observance and performance by the Vendor of the terms of the Contract.

NOW THEREFORE THIS AGREEMENT WITNESSETH AS FOLLOWS:

In consideration of the premises, the Guarantor hereby unconditionally, absolutely and irrevocably guarantees the Bank as follows:

a) The Guarantor hereby guarantees and undertakes to pay, on demand, to the Bank at its office at Chennai forthwith, an amount of Rs .....(the amount equal to .....% of the net order value or any part thereof, as the case may be), as aforesaid due to the Bank from the Vendor, towards any loss, costs, damages, etc. suffered by the Bank on account of default of the **Vendor** in providing comprehensive maintenance as per the warranty and contractual

terms and in the observance and performance of other terms, conditions, covenants, stipulations, provisions of the Contract, without any demur, reservation, contest, recourse or protest or without any reference to the **Vendor**. Any such demand or claim made by the Bank, on the Guarantor shall be final, conclusive and binding notwithstanding any difference or any dispute between the Bank and the **Vendor** or any dispute between the Bank and the **Vendor** pending before any Court, Tribunal, Arbitrator, or any other authority.

b) The Guarantor agrees and undertakes not to revoke this Guarantee during the currency of these presents, without the previous written consent of the Bank and further agrees that the Guarantee **herein contained shall continue to be enforceable until and unless it is discharged earlier by the Bank, in writing.**

c) The Bank shall be the sole judge to decide whether the Vendor has failed to perform the terms of the Contract in providing comprehensive maintenance as per the warranty and contractual terms by the Vendor to the Bank, and on account of the said failure what amount has become payable by the Vendor to the Bank under this Guarantee. The decision of the Bank in this behalf shall be final, conclusive and binding on the Guarantor and the Guarantor shall not be entitled to demand the Bank to establish its claim under this Guarantee but shall pay the sums demanded without any objection, whatsoever.

d) To give effect to this Guarantee, the Bank, may act as though the Guarantor was the principal debtor to the Bank

e) The liability of the Guarantor, under this Guarantee shall not be affected by
    i) any change in the constitution or winding up of the Vendor or any absorption, merger or amalgamation of the Vendor with any other company, corporation or concern; or
    ii) any change in the management of the Vendor or takeover of the management of the Vendor by the Government or by any other authority; or
    iii) acquisition or nationalisation of the Vendor and/or of any of its undertaking(s) pursuant to any law; or
    iv) any change in the constitution of the Bank / Vendor; or

v) any change in the set up of the Guarantor which may be by way of change in the constitution, winding up, voluntary or otherwise, absorption, merger or amalgamation or otherwise; or

vi) the absence or deficiency of powers on the part of the Guarantor to give Guarantees and/or Indemnities or any irregularity in the exercise of such powers.

6. Notwithstanding anything contained herein:

i) Our liability under this Bank guarantee shall not exceed Rs. _____ only.

ii) This Bank guarantee shall be valid up ……..only, being the date of expiry of the Guarantee.

iii) We are liable to pay up to the Guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before……** being the date of expiry of the claim period, falling which all your rights shall be extinguished and Guarantor shall be discharged from all liabilities thereunder, irrespective of return/non-return of original Bank Guarantee.

7. For all purposes connected with this Guarantee and in respect of all disputes and differences under or in respect of these presents or arising there from the courts of Chennai city where the Bank has its Central Office shall alone have jurisdiction to the exclusion of all other courts.

IN WITNESS WHEREOF the Guarantor has caused these presents to be executed on the day, month and year first herein above written as hereinafter appearing.

SIGNED AND DELIVERED BY
the within named Guarantor,
_____,

by the hand of Shri._____,

its authorised official.

(*) To be suitably altered depending on the nature of constitution of the bank that issues the guarantee.

(**) There shall be a **claim period of three months** from the date of expiry of the guarantee. Hence the date should be twelve months from the date of expiry of guarantee.

Note: Bank shall mandatorily use SFMS 760COV message protocol for inland BG.

Format 7.16-Format for Non-Disclosure Agreement

THIS AGREEMENT made and entered into at Chennai on this the…. day of……2026 between **Indian Overseas Bank**, a body corporate constituted under the Banking Companies (Acquisition & Transfer of Undertakings) Act 1970, having its Central Office at No.763, Anna Salai, Chennai, hereinafter called the "**BANK**" which term shall wherever the context so require includes its successors and assigns

AND

……a company incorporated under the Companies Act 1956 with its registered office at ……. and its local office at …… …… …… …….. hereinafter called the "COMPANY" which term shall wherever the context so require includes its successors and assigns, **WITNESSETH**:

WHEREAS

The Bank is interalia engaged in the business of banking and in the course of such business activity intend to implement ……..solution at its Organization.

The Bank has short-listed the Company after completion of tendering process for procurement of "……." in its office. The details of such activities are as per Purchase Order ref:……issued by the Bank, duly accepted by the Company.

The parties intend to engage in discussions and negotiations concerning establishment of business relationship between themselves. In the course of discussions and negotiations, it is anticipated that the parties may disclose or deliver to the other certain or some of its trade secrets or confidential or proprietary information for the purpose of business relationship.

NOW THERFORE THIS AGREEMENT WITNESSETH and it is hereby agreed by and between the parties hereto as follows:

1. Confidential information-

Confidential information means all information disclosed/furnished by either party to another party in connection with the business transacted/ to be transacted between the parties. Confidential information shall include any copy, abstract, extract, sample, note or module thereof and electronic material or records **of Bank or Bank's customer**. The

Company may use the information solely for and in connection with the purpose the information was conveyed.

2. Use of Confidential Information.

i. Each party agrees not to use the other's confidential information for any purpose other than for the specific purpose. Any other use of such confidential information by any party shall be made only upon the prior written consent from the authorized representative of the other party or pursuant to subsequent agreement between the Parties hereto.

ii. The Company shall not commercially use or disclose for commercial purpose any confidential information or any materials derived there from, to any other person or entity other than persons in its direct employment who have a need to access and knowledge of the said information, solely for the purpose authorized above.

iii. The Company shall not make news release, public announcements, give interviews, issue or publish advertisements or Agreement, the contents/provisions thereof, other information relating to this agreement, the purpose, the Confidential information or other matter of this agreement, without the prior written approval.

3. Exemptions

The obligations imposed upon either party herein shall not apply to information, technical data or know how whether or not designated as confidential, that**:**

i. Is already known to the receiving party (i.e. the party receiving the information) at the time of the disclosure without an obligation of confidentiality
ii. Is or becomes publicly known through no unauthorized act of the receiving party
iii. Is rightfully received from a third party without restriction and without breach of this agreement
iv. Is independently developed by the Receiving party without use of the other party's Confidential information and is so documented
v. Is disclosed without similar restrictions to a third party by the Party owning the confidential information

vi. Is approved for release by written authorization of the disclosing party; or

vii. Is required to be disclosed pursuant to any applicable laws or regulations or any order of a court or a governmental body; provided, however that the Receiving party shall first have given notice to the Disclosing Party and made a reasonable effort to obtain a protective order requiring that the confidential information and / or documents so disclosed be used only for the purposes for which the order was issued.

4. Term

This agreement shall be effective from the date of the execution of this agreement and shall continue till expiration or termination of this agreement due to cessation of the business relationship between the parties. Upon expiration or termination as contemplated herein the Receiving party shall immediately cease any or all disclosures or uses of confidential information and at the request of the disclosing party, the receiving party shall promptly return or destroy all written, graphic or other tangible forms of the confidential information and all copies, abstracts, extracts, samples, note or modules thereof.

The obligation under NDA shall survive the expiration/termination of the original contract referred and the obligations contained herein shall continue indefinitely as long as the underlying information remains confidential. The obligations of the Company respecting disclosure and confidentiality shall continue to be binding and applicable without limit until such information enters the public domain.

5. Title and Proprietary rights

Notwithstanding the disclosure of any confidential information by the Company, the bank shall retain title and all intellectual property and proprietary rights in the confidential information. No license under any trademark, patent or copyright or application for the same, which exist or thereafter may be obtained by the Bank is either granted or implied by the conveying of confidential information.

6. Return of confidential information:

Upon written demand of the Bank, the firm shall (I) cease using the confidential information (ii) return the confidential information and all copies, abstracts, extracts,

samples, note or modules thereof to the disclosing party within seven (7) days after receipt of notice and (iii) upon request of the disclosing party, certify in writing that the firm has complied with the obligations set forth in this paragraph.

Notwithstanding anything contained in this Agreement, the Company may retain sufficient documentation to support any opinion/ advice that it may provide. Such documentation shall continue to be governed by the terms and conditions of this Agreement.

7. Remedies:

The firm acknowledges that if it fails to comply with any of its obligations hereunder, the Bank may suffer immediate, irreparable harm for which monetary damages may not be adequate. The firm agrees that, in addition to all other remedies provided at law or in equity, the Bank shall be entitled to injunctive relief hereunder.

8. Entire Agreement:

This agreement constitutes the entire agreement between the parties relating to the matter discussed herein and supersedes any and all prior oral discussion and/or written correspondence or agreements between the parties. This agreement may be amended or modified only with the mutual written consent of the parties. Neither this agreement nor any rights, benefits and obligations granted hereunder shall be assignable or otherwise transferable.

9. Indemnity:

The Company agrees to keep confidential all information concerning the Bank that could be considered as "Confidential Information".
The Company agrees that in the event of the breach of the clause above by disclosure of confidential information mentioned hereinabove the Company would indemnify and keep the Bank indemnified against all losses or damages and all action, suit, litigations or proceedings (including all costs, charges, expenses relating thereto) that the Bank may incur or suffer any damage to its property or reputation or otherwise howsoever as part of the assignment or other related jobs entrusted and done by the Company. The firm agrees that the amount of compensation as decided by the Court will be final.

The Company agrees that the above compensation payable is in addition to any other right or remedy available to the Bank due to the breach of the covenants contained in this agreement including disclosure of confidential information.

10. Severability:

If any provision herein becomes invalid, illegal or unenforceable under any law, the validity, legality and enforceability of the remaining provisions and this agreement shall not be affected or impaired.

11. Dispute Resolution Mechanism:

In the event of any controversy or dispute regarding the interpretation of any part of this agreement or any matter connected with, arising out of, or incidental to the arrangement incorporated in this agreement, the matter shall be referred to arbitration and the award passed in such arbitration shall be binding on the parties. The arbitral proceeding shall be governed by the provisions of Arbitration and Reconciliation Act 1996 and the place of arbitration shall be Chennai.

12. Jurisdiction

The parties to this agreement shall submit to the jurisdiction of courts in Chennai.

13. Governing laws

The provisions of this agreement shall be governed by the laws of India.

In witness whereof the parties hereto have set their hands through their authorized signatories

BANK	**COMPANY**
(Authorized Signatory)	**(Authorized Signatory)**

Format 7.17-Certificate of Commissioning Of Solution

1. This is to certify that the products / equipment as detailed below has/have been received in good condition along with all the standard and special accessories (subject to remarks in Para No. 2) in accordance with the Contract/Specifications. The same has been installed and commissioned.
   a) Contract No. dated
   b) Description of the Solution
   c) Quantity
   d) Date of commissioning and proving test

2. Details of products not yet supplied and recoveries to be made on that account:

   S.No. Description Amount to be recovered

3. the proving test has been done to our entire satisfaction and Staff have been trained to operate the Product.

4. The Supplier has fulfilled his contractual obligations satisfactorily*

   or

   The Supplier has failed to fulfil his contractual obligations with regard to the following:
   (a)
   (b)
   (c)
   (d)

5. The amount of recovery on account of non-supply of Products is given under Para No. 2.

6. The amount of recovery on account of failure of the Supplier to meet his contractual obligations is as indicated in endorsement of the letter.

Signature :
Name : Designation with stamp :

* Explanatory notes for filling up the certificates:

(a) The supplier has adhered to the time schedule specified in the contract in dispatching the Products / Manuals pursuant to Technical Specifications.

(b) The supplier has supervised the commissioning of the solution in time i.e., within the period specified in the contract from the date of intimation by the Purchaser in respect of the installation of the Product.

(c) Training of personnel has been done by the Supplier as specified in the contract.

(d) In the event of Manuals having not been supplied or installation and commissioning of the Solution having been delayed on account of the Supplier, the extent of delay should always be mentioned.

Format 7.18-Letter Of Authorisation-Original Equipment Manufacturer (OEM)

The Deputy General Manager, **DATE:**
Indian Overseas Bank,
Information Technology Department,
763, Anna Salai,
CHENNAI – 600 002.

Sub: GeM tender for Supply, Implementation, Maintenance Of Cheque Truncation System (CTS) under Capex model.

Sir,

We ..... (Name of the OSD / OEM) who are established and reputable manufacturers / developers of ..... having factories at ....., ...and ..... do hereby authorize M/s ..... (who is the vendor submitting its bid pursuant to the GeM Bid issued by the Bank) to submit a Bid and negotiate and conclude a contract with you for supply and upgrade of ..... which are manufactured / developed by us against the GeM Bid received from your Bank by the Bidder and we have duly authorized the Bidder for this purpose.

Name of OEM	Name of Solution offered	Version details of solution offered

We undertake to perform the obligations as set out in the GEM BID in respect of such services and hereby extend our support and services through M/s..... during the contract period as per terms and conditions of the GEM BID.

We assure you that in the event of M/s ..... not being able to fulfill its obligation as M/s ..... vendor in respect of the terms defined in the GEM BID, ... (OEM / OSD Name) would continue to meet

these either directly or through alternate arrangements without any additional cost to the Bank.

The quoted model of the Solution/Appliance shall not be under **End of Service Life/End of support life** for the period of the contract.

Authorized Signatory
Name and Designation
Office Seal
Place:

Format 7.19-Agreement for Purchase and Maintenance of IT Assets and Services

This Agreement is executed at Chennai on ..... between Indian Overseas Bank, a body corporate constituted under the provisions of The Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 and having its registered office at Central Office, 763 Anna Salai, Chennai – 600 002, hereinafter referred to as "Bank" (which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns) of the FIRST Part.

AND

……, (Name of the company) a Public/ Private (strike out whichever is not applicable) limited company incorporated under the Companies Act, 1956 and having its registered office at …… hereinafter referred to as "**Vendor**" (which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns) of the SECOND Part.

This agreement should be read along with the RFP/LTE/PO and its amendments.

WHEREAS:

the Bank desires to engage the services of Vendor as Service provider for …….. as stated in the scope (Details as given in the Schedule A) of RFP/ITD/……. dated …… and issued a Purchase Order (PO) No. ITD/…… dated …… This Agreement is valid as per the terms mentioned in PO and RFP (and its amendments, if any) & the existing terms stands continued till renewal of the existing contracts, and for the subsequent renewals thereof as agreed by both the parties

and

Vendor has executed the Integrity Pact on …… and agreed to provide the services described in the PO and in this agreement on the terms and conditions set forth in RFP/ PO/ hereunder.

NOW, THEREFORE, the Parties agree as follows:

1. Definitions and Construction.

1.1. Definitions. The following defined terms used in this Agreement shall have the meanings specified below:

1.1.1. **"Party"** or **"Parties"** shall mean either Bank or the vendor or both, as the case may be.

1.1.2. **"Effective Date"** means the date of acceptance of Purchase order.

1.1.3. **"Confidential Information"** of the Parties shall mean all information and documentation of each Party, respectively, whether disclosed to or accessed by the other in connection with this Agreement, including (A) with respect to Bank, (i) all Bank Data, Bank Intellectual Property and all other information of Bank or its providers, customers (including their employees and job applicants), suppliers, contractors and other third parties doing business with Bank, and (ii) any information developed by reference to or use of Bank's Confidential Information, (B) with respect to Bank and the vendor, the terms of this Agreement; provided, however, that except to the extent otherwise provided by Law, the term "Confidential Information" shall not include information that (i) is independently developed by the recipient, as demonstrated by the recipient's written or electronic records, without violating the disclosing Party's proprietary rights, (ii) is or becomes publicly known (other than through unauthorized disclosure), (iii) is disclosed by the owner of such information to a third party free of any obligation of confidentiality, or (iv) is already known by the recipient at the time of disclosure, as demonstrated by the recipient's written records, and the recipient has no obligation of confidentiality other than pursuant to this Agreement, and (C) with respect to the vendor, any and all (i) vendor Intellectual Property and New Intellectual Property, (ii) information or documentation relating to vendor's business, business relationships, financial affairs, including financial reports, work plans, and structures, (iii) all other information of vendor or its partners, customers (including their employees), suppliers, contractors and other third parties doing business with the vendor, and (iv) any information developed by reference to or use of vendor's Confidential Information.

1.1.4. **"Intellectual Property"** shall mean any patent, copyright, trademark, or trade secret applicable to (a) processes, specifications, methodologies, procedures, and trade secrets, (b) software, tools and machine-readable texts and files, (c) literary work or other work of authorship, including documentation, reports, drawings, charts, graphics, and other written documentation, and (d) proprietary trade names, brands, logos or slogans.

1.1.5. **"Losses"** shall mean any and all damages, fines, penalties, deficiencies, losses, liabilities (including settlements and judgments) and expenses (including interest, court costs, reasonable fees and expenses of attorneys, accountants and other experts or other reasonable fees and expenses of litigation or other proceedings or of any claim, default, or assessment).

1.1.6. **"Services"** shall mean, collectively, the services being provided by the vendor pursuant to this Agreement, and, during the Termination Assistance Period, the Termination Assistance Services.

2. Services.

Commencing on the Effective Date and continuing throughout the Term, Vendor shall be responsible for providing to Bank: (a) the Services in accordance with the terms of this Agreement and as described in Schedule A, and (b) any incidental services, functions and responsibilities not specifically described in this Agreement, but which are required for the performance and delivery of the Services in accordance with the terms of this agreement.

3. Commercial Terms:

As per PO No. ITD/ISD/125/……/2025-26 Dated: …….

4. Period of Contract:

Period of contract is …… years from the date of acceptance of the referred Purchase Order i.e., …….. and this agreement will valid till subsequent renewals of contract (if any).

5. Operational Capabilities and Implementation.

5.1. Vendor shall provide such personnel and such Vendor Systems necessary to provide the Services described in Schedule A.

5.2. The provision of Services to the Bank and the timelines shall be in accordance with the Scope of Services set forth in Schedule A.

6. Management and Control.

Vendor shall be responsible for the successful completion of Services and Vendor Customer Relationship Manager shall be the single point of contact for all communications and support in this regard. Vendor shall be subject to the Change Control Procedures, which shall provide, at a minimum, that:

With respect to all changes, Vendor shall (a) schedule Changes so as not to unreasonably interrupt Bank's business operations, and (b) prepare and deliver to Bank a notice and schedule for any planned Changes prior to the implementation.

Vendor shall update the Change Control Procedures as necessary and shall provide such updated Change Control Procedures to Bank for its approval and the same will be confirmed to Vendor by the Chief Operating officer.

7. Consents.

Vendor shall obtain, maintain and keep current, at Vendor's expense, all Consents and Governmental Approvals. Upon Vendor's request, Bank shall use its reasonable best efforts to cooperate with and assist Vendor in obtaining any such Governmental Approvals, to the extent reasonably possible.

8. Audits Rights.

Upon notice from Bank, Vendor/ Sub contractor, if engaged by the vendor, shall provide records for inspection and assist Bank, or its designated third party contractor, and/ or Reserve Bank of India and/ or its auditors, if required and advised by the Bank to Vendor, with access to and any assistance (including financial records, reports and supporting documentation) that they may require with respect to the Service Locations and the Vendor Systems for the purpose of performing audits or inspections of the Services. Audit will be limited to documents and all activities connected to the services rendered under this agreement, performance of the services in current project and bidding process documents under this agreement.

However, vendor shall not be obligated to provide any internal cost break up, or any records/ data or allow audit/ inspection of any data, records which are not related to services under the agreement.

The Vendor/Sub-contractor agrees to allow RBI or persons authorised by it to access the Bank's IT infrastructure, applications, data, documents or any other necessary information given to, stored or processed by the service provider and/ or its sub-contractors in relation and as applicable to the scope of the outsourcing arrangement for the purpose of inspection and audit.

9. Bank's Trademarks:

Bank's trademarks, service marks and trade names are the property of Bank, and Vendor agrees that it shall not use any of Bank's trademarks, service marks or trade names without Bank's approval. Vendor agrees not to register any Bank trademarks, service marks or trade names without Bank's approval. Vendor shall not, without Bank's approval, remove or alter any trademark, service mark, trade name, copyright, or other proprietary notices, legends, symbols, or labels appearing on or in materials pertaining to the Services and related documentation delivered to Vendor by Bank.

10. Confidentiality.

The Vendor shall hold all Confidential Information relating to or obtained from the Bank in strict confidence. Vendor shall treat any and all the Confidential Information with at least the same degree of care and protection as it would treat its own Confidential Information. Except as permitted by this Agreement, neither Party or its Agents shall disclose, publish, release, transfer or otherwise make available Confidential Information of, or obtained from the other in any form to, or for the use or benefit of, any person or entity without the disclosing Party's consent. Each of the Parties shall, however, be permitted to disclose relevant aspects of the Disclosing Party's Confidential Information to its officers, professional advisors, subcontractors, and employees, to whom such disclosure is reasonably necessary for the performance of its duties and obligations under this Agreement. The obligation as to the confidentiality shall survive even after termination of this agreement.

In case the Vendor In case the Vendor breaches the confidentiality obligations, and any loss is caused to the Bank due to such breach, the Vendor shall compensate the

Bank to the extent of quantified loss. The Vendor indemnifies the Bank that any loss occurred to the Bank shall be adequately compensated based on mutually agreed basis and in the event of failing to arrive at a consensus as regards the quantum, the Bank can resort to legal recourse applicable under existing provisions of law to determine the loss.

11. Additional Covenants.

The Parties covenant and agree that during the Term and Termination Assistance Period:

1) The Parties shall comply with all Laws applicable to them and shall obtain all applicable permits and licenses required of them in connection with its obligations under this Agreement.
2) Neither party will implement or design unauthorized methods for gaining access to the Bank, Vendor Systems, or Confidential Information; and
3) In respect of development of Software, the Business logic for the software developed is the sole proprietary of the bank and the same shall not be shared without prior written consent of the Bank.

12. Insurance.

Without limiting Vendor's liability to Bank or third parties, Vendor will maintain will have and maintain such types and amounts of liability insurance as is normal and customary in the industry generally for parties similarly situated and will upon request provide the Bank with a copy of its policies of insurance in that regard, along with any amendments and revisions there to. The financial liability of Vendor during the tenure of the contract and its subsequent renewals under this or any terms of this agreement other than under insurance total shall not exceed the fee it receives under the agreement.

13. Indemnity:

The Vendor shall agree and keep the Bank indemnified against all claims, actions for loss, damages,, costs, expenses, charges, including legal expenses (Attorney, Advocates fees included) which the Bank may suffer or incur on account of (i) Services Provider's breach of its warranties, covenants, responsibilities or obligations; and/or (ii) breach of confidentiality obligations mentioned in this Agreement; and/or (iii) any willful misconduct and gross negligent acts on the part of employees, agents, representatives or sub-contractors (if allowed) of Service Provider (iv) Any 3rd Party IPR infringement (v)any legal proceedings initiated by employees or other persons deployed by the Company (vi) proceedings by any statutory/regulatory/Govt. authority arising solely due to the Gross Negligence and Willful Misconduct of the Service Provider relating to the performance of its obligations . Service Provider shall make good the loss suffered by the Bank for any or all the loss caused to the Bank due to the above violations.

Indemnity for points (i) and (v) will be subject to the cap given in section 5.10 Limitation of Liability.

Indirect Damages - In no event shall either Party be liable for any indirect, consequential, or incidental losses, damages or claims including loss of profit, loss of business or revenue or lost savings or lost goodwill even if it has been advised of their possible existence.

For the purpose of above clause, "Gross Negligence" means any act or failure to act by a party which was in reckless disregard of or gross indifference to the obligation of the party under this Agreement is done and that has caused injury, damage to life, personal safety, real property, harmful consequences to the other party, which such party causing the damages knew, or would have known that if it was acting as a reasonable person, it would result in such act or failure to act.

Notwithstanding the forgoing, Gross Negligence shall not include any action taken in good faith. "Willful Misconduct" means any act or failure to act with an intentional disregard of any provision of this Agreement, which a party knew or should have known if it was acting as a reasonable person, it would result in injury.
The vendor shall compensate the Bank for such financial loss, suffered by the Bank if the vendor fails to fix bugs, provide the modifications/enhancements/customization as required by the Bank as per the terms and conditions of Service Level Agreement.

14. Termination

The Bank, by written notice sent to the Company, may terminate the Contract, in whole or in part, at any time for its convenience by giving a notice period of not less than 90 days. The notice of termination shall specify that termination is for the Bank's convenience, the extent to which performance of the Company under the contract is terminated, and the date upon which such termination becomes effective. In the event of termination of the Agreement for the Bank's convenience, Service Provider shall be entitled to receive payment for the Services rendered (delivered) up to the effective date of termination. It is also clarified that the Vendor shall not be entitled to terminate the contract.

14.1. Termination for Default:

The Bank, without prejudice to any other remedy for breach of Contract, by giving 90 days' written notice of default sent to the vendor, may terminate this Contract in whole or in part:

a) if the vendor fails to deliver the goods/ services within the period(s) specified in the Purchase Order

or

b) if the Bidder fails to perform any other obligations(s) under the Contract.

In the event of the Bank terminating the Contract in whole or in part, the Bank may procure, upon such terms and in such manner, as it deems appropriate, goods and related services, similar to those undelivered, and the vendor shall be liable to the Bank for any excess costs for such similar services subject to the maximum cap of 10% of the undelivered portion. However, the vendor shall continue performance of the Contract to the extent not terminated.

14.2. Termination for Insolvency:

The Bank may at any time terminate the Contract by giving written notice to the Bidder, if the Bidder becomes bankrupt or otherwise insolvent. In this event,

termination will be without compensation to the Bidder, provided that such termination will not prejudice or affect any right of action or remedy, which has accrued or will accrue thereafter to the Bank.

14.3. Termination for violation of Integrity Pact:

The vendor agrees that if they make incorrect statement on the Integrity Pact, and found later, i.e., after awarding of the contract, the contract is liable to be terminated for such reason.

14.4. Termination for other actions:

The bank has the right to terminate the agreement with immediate effect if the Vendor is blacklisted or in case any fraud, forgery, theft, robbery by Vendor or its agents or its employees.

In the event of termination of the outsourcing agreement for any reason in cases where the service provider deals with the customers of the bank, the same shall be given due publicity by the bank to ensure that the customers stop dealing with the concerned service provider.

15. Termination Assistance.

15.1. Vendor shall, upon Bank's request, continue the performance of the Services during the Termination Assistance Period. The quality and level of performance during the Termination Assistance Period shall not be degraded. After the expiration of the Termination Assistance Period, Vendor shall (i) provide support to the extent of answering questions from Bank regarding the Services on an "as needed" basis and (ii) deliver to Bank any remaining Bank-owned reports and documentation still in Vendor's possession.

15.2. Each Party shall, upon the later of (i) the expiration or termination of this Agreement and (ii) the last day of the Termination Assistance Period (the "End Date"):

a. return, destroy or erase all Intellectual Property of the other Party; and
b. return to the other Party all assets owned, licensed, or leased by the other Party.

16. Resolution of Disputes:

The Bank and the vendor shall make every effort to resolve amicably by direct informal negotiations any disagreement or dispute between them on any matter connected with the contract or in regard to the interpretation of the context thereof.

In case of any disagreement or dispute between the Bank and the vendor which remains unresolved after discussions, the dispute will be resolved in a manner as outlined hereunder.

1. In the event of any dispute between the bank and the vendor in case both the parties are agreeable, they shall try to settle dispute through mediation before the panel of IEMS in a time bound manner. The fees/ expenses for dispute resolution shall be equally shared by both Bank and the vendor.

2. In case the dispute remains unresolved even after mediation by the panel of Independent External Monitors, such differences and disputes shall be referred, at the option of either party, to the arbitration of one single arbitrator to be mutually agreed upon and in the event of no consensus, the arbitration shall be done by three arbitrators, one to be nominated by the Bank, one to be nominated by the successful bidder and the third arbitrator shall be nominated by the two arbitrators nominated as above. Such submission to arbitration will be in accordance with the Arbitration and Conciliation Act 1996. Upon every or any such reference the cost of and incidental to the references and award shall be at the discretion of the arbitrator or arbitrators or Umpire appointed for the purpose, who may determine the amount thereof and shall direct by whom and to whom and in what manner the same shall be borne and paid. In case of Arbitration the same shall be done in accordance with the Rules of Arbitration of the "SCOPE" and the award made in pursuance thereof shall be final and binding on the parties. Courts of Chennai city shall alone have jurisdiction to the exclusion of all other courts, in respect of all differences and disputes envisaged above.

17. Force Majeure:

No Party shall be liable to the other Party hereto for delays in performance of its obligations hereunder due to riot, act of God, war, fire, flood, invasion, earthquake,

epidemics, interruption of transportation, embargo, explosion, strike, lockout or other labour troubles, actions of governmental authority, or any other causes similar to the forgoing which are beyond the reasonable control of such Party; the performance of obligations hereunder shall be suspended during, but no longer than, the existence of such cause. Performance of obligations is excused only for the time delay imposed by such causes and only to the extent that alternative means of performance are unavailable. If either Party is affected by Force Majeure, it shall forthwith notify the other Party of its nature and extent.

18. Assignment:

The vendor shall not assign, in whole or in part, its obligations to perform under this Contract, except with the Bank's prior written consent.

19. Notices:

Except as otherwise specified in this Agreement, all notices, requests, consents, approvals, agreements, authorizations, acknowledgements, waivers, and other communications required or permitted under this Agreement shall be in writing and shall be sent by e-mail, facsimile or delivered by hand or post.

20. Waivers:

No delay or omission by either Party to exercise any right or power it has under this Agreement shall impair or be construed as a waiver of such right or power. A waiver by any Party of any breach or covenant shall not be construed to be a waiver of any succeeding breach or any other covenant. All waivers must be signed by the Party waiving its rights.

21. Entire Agreement:

This Agreement and the Schedules to this Agreement represent the entire agreement between the Parties with respect to its subject matter, and there are no other representations, understandings, or agreements between the Parties relative to such subject matter.

22. Amendments:

No amendment to, or change, waiver, or discharge of, any provision of this Agreement shall be valid unless in writing and signed by an authorized representative of each of the Parties.

23. Governing Law and Jurisdiction:

This Agreement and the relationship between hereto shall be governed by the laws of India.

24. Disaster Recovery and Business Continuity Plan:

The vendor shall have a clear Disaster Recovery and Business Continuity Plan in place for support services and shall submit the BCP plan to the Bank. It is to be ensured that the BCP plan for Disaster recovery must have arrangements in different seismic zone.

Vendor agrees to ensure having backup arrangements of skilled/essential personal to operate critical functions onsite during exigencies including but not limited to pandemic situations.

Vendor for the purpose of performance of the contract agrees to have back-to-back arrangements with OEMs/OSDs to support the deliverables/services to be provided to the Bank.

25. Preservation of Documents and Data:

Vendor shall, at all times, comply with the provisions contained in the Information Technology Act, 2000 and the statutory rules framed there under, from time to time, in so far as the same is applicable to its operations in accordance with this Agreement, and also with all other Laws, rules and regulations, whether already in force or which may be enacted anytime in the future pertaining to data security and management, data storage, sharing and data protection, as also with the National Identification Authority of India Bill, as and when the same in enacted into a law and comes into force, and shall ensure level of compliance required under such laws.

26. Severability:-

If any Clause or part thereof, of this Agreement or any agreement or document appended hereto or made a part hereof is rendered invalid, ruled illegal by any

court of competent jurisdiction, or unenforceable under present or future Laws effective during the term of this Agreement, then it is the intention of the Parties that the remainder of the Agreement, or any agreement or document appended hereto or made a part hereof, shall not be affected thereby unless the deletion of such provision shall cause this Agreement to become materially adverse to any Party in which case the Parties shall negotiate in good faith such changes to the Agreement, or enter into suitable amendatory or supplementary agreements, as will best preserve for the Parties the benefits and obligations under such provision.

27. Notices:

All notices, requests, demands, waivers and other communications required or permitted to be given under the Agreement shall be in writing through email or postal mail/courier to be sent to the following addresses:

For Service Provider: Address:
Tel:
Email:

Or, in each case, at such other address as may be specified in writing to the other Parties in accordance with the requirements of this Clause. All such notices, requests, demands, waivers and other communications shall be deemed duly given

(i) if by personal delivery, on the day after such delivery,
(ii) if by certified or registered mail, on the tenth day after the mailing thereof,
(iii) if by courier service or similar service, on the day delivered, or
(iv) if by facsimile, email, on the day following the day on which such facsimile or email was sent and, in the case of a facsimile, electronic confirmation of receipt is received.

All notices to be sent by Service Provider to the Merchant shall be sent to the Bank and to the address of the Merchant provided by the Bank. It will be the Bank's responsibility to ensure that the respective merchant receives the notice and complies by the same. The Bank shall be liable for any non-compliance of the notice.

28. The Vendor shall be solely responsible for performance of the terms and conditions of the contract and on such performance any data breach happens or the Vendor is not in a position to provide the services and in the event of service unavailability due to any circumstance, the same has to be brought to the notice of the Bank immediately by the Vendor to enable the Bank to take prompt risk mitigation measures and to ensure compliance with statutory and regulatory guidelines. This is besides the indemnity and legal recourse available to the Bank to claim damages for such breach resulting in loss to the Bank.

29. The scope of Service provided by the Vendor to the Bank shall be subject to regular monitoring and assessment by the Bank periodically and the Vendor shall assist the Bank and provide necessary details to the Bank to carry out the same. Vendor shall inform the Bank immediately in case he is unable to perform to the agreed standard due to any reason to avert risk and also shall take prompt corrective measures advised by the Bank.

30. The Vendor acknowledge The Vendor acknowledges and agrees that the direction issued by the RBI as the Regulator of the Bank in relation to the outsourcing activities of the Bank shall continue to govern them as and when such directions are issued and agree to adhere to the said directions of RBI.

31. Limitation of Liability:

1. The maximum aggregate liability of Service Provider, subject to clause 31.3 in respect of any claims, losses, costs or damages arising out of or in connection with this Agreement shall not exceed the total Order Value of the contract.

2. Indirect Damages - In no event shall either Party be liable for any indirect, consequential, or incidental losses, damages or claims including loss of profit, loss of business or revenue or lost savings or lost goodwill even if it has been advised of their possible existence.

3. The limitations set forth in Clause 31.1 above shall not apply with respect to:

a) claims that are the subject of indemnification pursuant to infringement of third party Copyrights/third party Intellectual Property Right.
b) damage(s) occasioned by the Gross Negligence or Wilful Misconduct of Service Provider;
c) damage(s) occasioned by Service Provider for breach of Confidentiality Obligations;

d) Regulatory or statutory fines imposed by a Government or Regulatory agency for noncompliance of statutory or regulatory guidelines applicable to the Scope of work and arising solely due to Gross Negligence and Willful Misconduct of the Service Provider.

For the purpose of clause 31.3.b and 31.3.d, "Gross Negligence" means any act or failure to act by a party which was in reckless disregard of or gross indifference to the obligation of the party under this Agreement is done and that has caused injury, damage to life, personal safety, real property, harmful consequences to the other party, which such party causing the damages knew, or would have known that if it was acting as a reasonable person, it would result in such act or failure to act for which such party is legally liable. Gross Negligence shall not include any action taken in good faith.

"Willful Misconduct" means any act or failure to act with an intentional disregard of any provision of this Agreement, which a party knew or should have known if it was acting as a reasonable person, it would result in injury, damage to life, personal safety, real property, harmful consequences to the other party, but shall not include any error of judgment or mistake made in good faith.

IN WITNESS WHEREOF, each of Bank and Vendor has caused this Agreement to be signed and delivered by its duly authorized representative on the day, month and the year first written

For Indian Overseas Bank **Signature**	**For Vendor** **Signature**
Name:	Name:
Title:	Title:
Date:	Date:

SCHEDULE A

1. **Scope of Services/ Technical Specification/ Terms and Conditions:**

As per referred RFP/ PO terms and its subsequent amendments (if any).

2. Other terms and conditions:

a) Vendor to do complete scop check of the proposed engineers and give declaration to the Bank in this regard.
b) Vendor has to submit a letter duly signed by his employees wherein the vendor will identify his employee as a person deputed to the Bank for discharging duties in terms of the agreement with the bank and the employee undertaking to abide by all the rules and regulations of the bank while discharging his duties in the Bank.
c) Vendor has to obtain Non-Disclosure Cum Confidentiality undertaking letter from each of the employee for deputation to the Bank. In the said undertaking, the vendor will be held liable for any loss or damage caused to the bank because of any breach of terms of undertaking letter or any other terms specified by the bank in writing, either by the vendor or its employees or by both.

Part 8 -Compliance Of Service Level Agreement (SLA) & Applicable Penalties

8.1 Service Level Agreement (SLA)

- The selected bidder will be required to sign the formal agreement/contract/ Service Level Agreement with the Bank within 30 days of the acceptance of the LOI/ Purchase Order. After issuance of PO/LOI, terms of RFP and Purchase Order/LOI shall be binding and act as contract.

- The Bidder shall implement, operate, and maintain the CTS solution for the Bank for an initial contract period of five (5) years, which may be extended for a further period of two (2) years on mutually agreed terms and conditions.

- The Bidder shall have end-to-end responsibility for configuration, operation, support, and maintenance of the CTS solution throughout the contract period, including any extension thereof. Any technical glitches, defects, or software-related issues shall be attended to and resolved on a priority basis during the entire contract period to ensure uninterrupted service.

- As part of FMS service, If Bidder fails to provide FM engineer on any day, Bank will deduct charges for that number of days on prorate basis (Calculation of Charge = (monthly charges/working days) * no. of days

absent)). Bank reserves its right to recover these amounts by any mode such as adjusting from any payments to be made by the Bank to the bidder.

- The overall Penalty during contract period will be to a maximum of 10% of the total cost of the project. On exceeding this threshold Bank will be free to terminate the contract and invoke performance Bank guarantee submitted by the Bidder.

- Penalties shall be applicable for any downtime of the CTS software application. The Bidder shall guarantee a minimum monthly uptime of 99.95% for the application. In the event that the uptime maintained in any calendar month falls below 99.95%, the Bidder shall be liable to penalties in accordance with the provisions of this contract. Penalties for application downtime shall be levied as per the penalty matrix provided in the table below, calculated on a monthly basis.

Service Area	**Service/Uptime Level**	**Penalty**
Availability Management of Solutions /Appliance/Products		
Uptime of the Application / Solution/Product	Uptime of application/Solution/Product -- calculated on monthly basis for each solution.	Penalty shall be applicable in % (as mentioned below) of monthly contract value.

Level of Uptime monthly	**Penalty Charges**
99.95% and above	No Penalty
99.00% and above but below 99.95%	5 % of total Monthly pay-out
98.00% and above but below 97.00%	6% of total Monthly pay-out
97% and above but below 98.00%	7% of total Monthly pay-out
96% and above but below 97%	8% of total Monthly pay-out

95% and above but below 96%	9% of total Monthly pay-out
94% and above but below 95%	10% of total Monthly pay-out
90% and above but below 94%	20% of total Monthly pay-out

Bank will be free to terminate the contract and invoke performance Bank guarantee submitted by the Bidder if uptime falls below 90% for any month

Uptime will be calculated as follows:

$$\text{Uptime} = \frac{\text{Total Number of hours in a Month - Number of hours impacted in month}}{\text{Total Number of hours in month}} \times 100$$

- Further if the number of downtime instances during a month exceeds 3 times, an additional 0.50% downtime will be reduced from uptime and the Penalties, if any, shall be calculated on monthly basis and recovered from the monthly payment.

- Scheduled downtimes and downtimes attributable to the Bank, shall be excluded from the calculation of application downtime and shall not attract any penalties.

- Root Cause Analysis (RCA) for any issues faced related to application, software, solution must be provided by the respective bidder within 1 week.

- Any software bug, issue, or defect identified by the Bank or the Bidder's service engineer shall be rectified within the stipulated timelines, as defined based on the criticality and severity of the issue.

- A *Problem / Issue / Defect* shall be defined as any flaw, error, or malfunction within the application, software, solution deployed by the Bidder that

prevents or degrades the ability of end users to perform regular operations in accordance with the approved specifications, operational guidelines, and functional requirements, within the stipulated timeframe.

- All Problems / Issues / Defects reported by users shall be assessed for impact and classified based on severity, as detailed below:

Sl. No	Severity of Service	Severity Description	Problem Analysis & Response	Time frame for Resolution (Inclusive of Response Time)	Root cause analysis
1	Critical	A production application outage or major malfunction that renders the system inoperative, prevents users from performing normal functions, and affects mission-critical business functionality, constituting an emergency.	< 1Hour	< 2 Hours	< 1 Week
2	High	A critical degradation of application functionality or performance	< 1Hour	< 6 Hours	< 1 Week

		where system operations are halted or malfunctioning, resulting in more than 500 or more users being unable to perform normal functions, while limited portions of the application may remain operational.			
3	Low	Minor irritants during operations/won't impact in any noticeable breakdown of the system.	< 1Hour	< 8 Hours	< 1 Week

- In the event the Bidder fails to respond to or resolve any reported issue within the stipulated response or resolution timelines, the Bank shall levy a penalty of ₹5,000 (Rupees Five Thousand only) per hour for each hour of delay, subject to a maximum penalty cap of 10% of the total annual project cost.

Operational level Penalty:

The bidder shall ensure accurate data capture and processing of cheque instruments under the Cheque Truncation System (CTS), including correctness of cheque amount, cheque number, payee name, and account number.

Any cheque return, exception, or discrepancy arising due to incorrect data entry or processing, attributable to the bidder or its personnel, shall be treated as a vendor-attributable error. The Bank follows a Zero-Defect Policy for CTS data entry and processing.

The Service Provider shall ensure 100% accuracy in the capture and processing of cheque instruments. However, considering the possibility of minimal human error, a limited operational tolerance threshold is permitted as detailed below:

Maximum ten (10) instruments per day, and Maximum two hundred fifty (250) instruments per month.

In the event the number of vendor-attributable errors exceeds the above daily and/or monthly thresholds, penalties shall be levied as follows:

₹200 (Rupees Two Hundred only) per instrument for each error beyond the permissible daily limit.

The calculated penalty amount shall be adjusted against the monthly or subsequent payments due to the vendor.

Data enrichment - Data enrichment of the inward files to be completed and provided for bank verification within 30 mins of the file received from NPCI , in case of delay 1% monthly payout may be deducted as penalty.

Part 9 - Abbreviations Used in The Document

Abbreviation	Expansion
AMC	Annual Maintenance contract
ATS	Annual Technical Support
CA	Chartered Accountant
CVC	Central Vigilance commission
DB	Database
DC	Data Center
DD	Demand Draft
DRS	Disaster Recovery Site
NDC	Near Data center
NDR	Near Disaster Recovery Site
EMD	Ernest Money Deposit
GST	Goods and Services Tax
OEM	Original Equipment Manufacturer
IOB	Indian Overseas Bank
IT	Information Technology
KYC	Know your Customer
MIS	Management Information System
NEFT	Net Electronic Fund Transfer
OS	Operating System
OEM	Original Equipment Manufacturer
RFP	Request for Proposal
RBI	Reserve Bank of India
SB	Successful Bidder
SI	System Integrator
SLA	Service Level Agreement
SOP	Standard Operating Procedure
SMS	Short messaging services
UAT	Unit Acceptance Testing
TDS	Tax deducted at Source
EDW	Enterprise Data Warehouse
BI	Business intelligence
FIFO	First-In-First-Out

TAT	Turn Around Time
CBS	Core Banking Solution
BPM	Business Process Management
NLP	Natural language processing
DCMS	Debit Card Management System
API	Application Programming Interface
OVD	Officially Valid documents
KYC	Know Your Customer
GUI	Graphical User Interface
FAQ	Frequently Asked Question
SDK	Software Development Kit
NPCI	National Payments Corporation of India
OOB	Out Of the Box
ETL	Extract, Transform and Load
CTI	Computer Telephony Integration
UI	User Interface
OS	Operating System
ODMA	Open Document Management API
OWASP-MASVS,	Open Web Application Security Project Mobile Application Security Verification Standard
OWASP-ASVS	Open Web Application Security Project Application Security Verification Standard
NIST	National Institute of Standards and Technology
CERT-IN	Indian Computer Emergency Response Team
MQ	Message Queue
ESB	Enterprise Service Bus
RDBMS	Relational Database Management Systems
JBDC	Java Database Connectivity
ODBC	Open Database Connectivity
W3C	World Wide Web Consortium
HTML	HyperText Markup Language,

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